SOLICITATION, OFFER AND AWARD

1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	RATING	PAGE OF PAGE
		1 106

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	N4571A-27-R-0002	☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		5494

7. ISSUED BY	CODE	8. ADDRESS OFFER TO *(If other than item 7)*
COMMANDER, NAVY INSTALLATIONS COMMAND NAF ACQUISITIONS BRANCH N945 5720 INTEGRITY DRIVE LASSEN BUILDING 457 MILLINGTON, TN 38055-6500 POC: Kelly Cline kelly.l.cline7.naf@us.navy.mil		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and electronic copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if hand carried, in the depository located in See Section L until **10:00 CT** *(Hour)* local time **21 DECEMBER 2026** (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. L-6. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE *(NO COLLECT CALLS)* AREA CODE	NUMBER	EXT.	C. E-MAIL ADDRESS
	Kelly Cline	901	305-3378		kelly.l.cline7.naf@us.navy.mil

11. TABLE OF CONTENTS

(X)	SEC.	DESCRIPTION	PAGE(S)	(X)	SEC.	DESCRIPTION	PAGE(S)
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OFFER *(Must be fully completed by offeror)*

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days *(60 calendar days unless a different period is inserted by the offeror)* from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT *(See Section I, Clause NARS.I053)*	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGMENT OF AMENDMENTS *(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):*	AMENDMENT NO.	DATE	AMENDMENT NO.	DATE

15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

15B. TELEPHONE NUMBER AREA CODE	NUMBER	EXT.	15C. ☐ CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE

AWARD *(To be completed by Government)*

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
		NON APPROPRIATED FUNDS

22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION:	23. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)*	ITEM
☐ 10 U.S.C. 2304(c) ( ) ☐ 41 U.S.C. 253(c) ( )		See Section G

24. ADMINISTERED BY *(If other than Item 7)*	CODE	25. PAYMENT WILL BE MADE BY	CODE
		See Section G	

26. NAME OF CONTRACTING OFFICER *(Type or print)*	27. UNITED STATES OF AMERICA *(Signature of Contracting Officer)*	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

PART I, SECTION B: SUPPLIES OR SERVICES AND PRICES/COSTS

B-1. GENERAL. This is a procurement of the Commander, Navy Installations Command (CNIC) Morale, Welfare, and Recreation (MWR) Nonappropriated Funds Instrumentality (NAFI), hereinafter referred to as NAFI.

B-2. TYPE OF CONTRACT. It is anticipated that this solicitation is to be awarded as a Firm-Fixed-Price type contract with a Base Year of One (1) year with Four (4) One-year option periods.

B-3. SUPPLIES AND/OR SERVICES PRICE/COST SCHEDULE. Offeror is to fill in the proposed pricing table below. The Government anticipates a labor mix from the below list of CLINS that will be utilized against the contract.

B-4. AWARD. Upon award of contract, Sections K, L, and M of the solicitation will be removed, and the Contractor's technical proposal, including any revisions will be incorporated by reference, subject to Clause NARS.I015 (Order of Precedence).

B-5.

MilLife Online Learning -Base Year					
CLIN	**LCAT**	**Proposed HOURS**	**Unit Issue**	**Proposed Unit Price**	**Proposed Total Price**
Program Manangement (FFP)					
0001	Program Manager (Contract Level)		LH		
0001a	Project Manager		LH		
	Subtotal				
Training (T&M)					
0002	Sr. Program Analyst (Sr. Instructional Systems Designer)		LH		
0002a	Program Analyst II (Instructional Systems Designer)		LH		
0002b	Program Analyst II (Technical Writer, Editor, QA)		LH		
0002c	Technical Specialist II (Sr. Content Developer)		LH		
0002d	Program Analyst II (Graphic Designer)		LH		
0002e	Program Analyst II (508 and SCORM reviewer)		LH		
	Subtotal				
Reporting and Analysis (FFP)					
0003	Program Analyst III (Data Analyst)		LH		
	Subtotal				

Develop and Maintain Online Resources (T&M)					
0004	Technical Specialist II (LMS Admin, Sr. Content Developer)		LH		
0004a	Program Analyst II (Multimedia Specialist)		LH		
0004b	Program Analyst II (Web Design and Content Developer)		LH		
0004c	Sr. Program Analyst (Course Administrator)		LH		
0004d	Program Analyst II (Issue Resolution)		LH		
0004e	Program Analyst II (Course Testing and QA)		LH		
	Subtotal				
Travel and ODCs (T&M)					
0005	Travel --- 0005a		LO	NTE	$15,000.00
0005a	ODCs --- 0005b		LO	NTE	$65,000.00
	Subtotal			NTE	$80,000.00
Total					

MilLife Online Learning - Option Year I					
CLIN	**LCAT**	**Proposed Hours**	**Unit Issue**	**Proposed Unit Price**	**Proposed Total Price**
Program Manangement (FFP)					
1001	Program Manager (Contract Level)		LH		
1001a	Project Manager		LH		
	Subtotal				
Training (T&M)					
1002	Sr. Program Analyst (Sr. Instructional Systems Designer)		LH		
1002a	Program Analyst II (Instructional Systems Designer)		LH		
1002b	Program Analyst II (Technical Writer, Editor, QA)		LH		
1002c	Technical Specialist II (Sr. Content Developer)		LH		
1002d	Program Analyst II (Graphic Designer)		LH		
1002e	Program Analyst II (508 and SCORM reviewer)		LH		
	Subtotal				
Reporting and Analysis (FFP)					

1003	Program Analyst III (Data Analyst)		LH		
	Subtotal				
Develop and Maintain Online Resources (T&M)					
1004	Technical Specialist II (LMS Admin, Sr. Content Developer)		LH		
1004a	Program Analyst II (Multimedia Specialist)		LH		
1004b	Program Analyst II (Web Design and Content Developer)		LH		
1004c	Sr. Program Analyst (Course Administrator)		LH		
1004d	Program Analyst II (Issue Resolution)		LH		
1004e	Program Analyst II (Course Testing and QA)		LH		
	Subtotal				
Travel and ODCs (T&M)					
1005	Travel --- 0005a		LO	NTE	$15,000.00
1005a	ODCs --- 0005b		LO	NTE	$65,000.00
	Subtotal			NTE	$80,000.00
Total					

MilLife Online Learning - Option Year II					
CLIN	**LCAT**	**Proposed HOURS**	**Unit Issue**	**Proposed Unit Price**	**Proposed Total Price**
Program Manangement (FFP)					
2001	Program Manager (Contract Level)		LH		
2001a	Project Manager		LH		
	Subtotal				
Training (T&M)					
2002	Sr. Program Analyst (Sr. Instructional Systems Designer)		LH		
2002a	Program Analyst II (Instructional Systems Designer)		LH		
2002b	Program Analyst II (Technical Writer, Editor, QA)		LH		
2002c	Technical Specialist II (Sr. Content Developer)		LH		
2002d	Program Analyst II (Graphic Designer)		LH		

2002e	Program Analyst II (508 and SCORM reviewer)		LH		
	Subtotal				
Reporting and Analysis (FFP)					
2003	Program Analyst III (Data Analyst)		LH		
	Subtotal				
Develop and Maintain Online Resources (T&M)					
2004	Technical Specialist II (LMS Admin, Sr. Content Developer)		LH		
2004a	Program Analyst II (Multimedia Specialist)		LH		
2004b	Program Analyst II (Web Design and Content Developer)		LH		
2004c	Sr. Program Analyst (Course Administrator)		LH		
2004d	Program Analyst II (Issue Resolution)		LH		
2004e	Program Analyst II (Course Testing and QA)		LH		
	Subtotal				
Travel and ODCs (T&M)					
2005	Travel --- 0005a		LO	NTE	$15,000.00
2005a	ODCs --- 0005b		LO	NTE	$65,000.00
	Subtotal			NTE	$80,000.00
Total					

MilLife Online Learning - Option Year III					
CLIN	**LCAT**	**Proposed HOURS**	**Unit Issue**	**Proposed Unit Price**	**Proposed Total Price**
Program Manangement (FFP)					
3001	Program Manager (Contract Level)		LH		
3001a	Project Manager		LH		
	Subtotal				
Training (T&M)					
3002	Sr. Program Analyst (Sr. Instructional Systems Designer)		LH		
3002a	Program Analyst II (Instructional Systems Designer)		LH		
3002b	Program Analyst II (Technical Writer, Editor, QA)		LH		

3002c	Technical Specialist II (Sr. Content Developer)		LH		
3002d	Program Analyst II (Graphic Designer)		LH		
3002e	Program Analyst II (508 and SCORM reviewer)		LH		
	Subtotal				
Reporting and Analysis (FFP)					
3003	Program Analyst III (Data Analyst)		LH		
	Subtotal				
Develop and Maintain Online Resources (T&M)					
3004	Technical Specialist II (LMS Admin, Sr. Content Developer)		LH		
3004a	Program Analyst II (Multimedia Specialist)		LH		
3004b	Program Analyst II (Web Design and Content Developer)		LH		
3004c	Sr. Program Analyst (Course Administrator)		LH		
3004d	Program Analyst II (Issue Resolution)		LH		
3004e	Program Analyst II (Course Testing and QA)		LH		
	Subtotal				
Travel and ODCs (T&M)					
3005	Travel --- 0005a		LO	NTE	$15,000.00
3005a	ODCs --- 0005b		LO	NTE	$65,000.00
	Subtotal			NTE	$80,000.00
Total					

MilLife Online Learning - Option Year IV					
CLIN	**LCAT**	**Proposed HOURS**	**Unit Issue**	**Proposed Unit Price**	**Proposed Total Price**
Program Manangement (FFP)					
4001	Program Manager (Contract Level)		LH		
4001a	Project Manager		LH		
	Subtotal				
Training (T&M)					
4002	Sr. Program Analyst (Sr. Instructional Systems Designer)		LH		

4002a	Program Analyst II (Instructional Systems Designer)		LH		
4002b	Program Analyst II (Technical Writer, Editor, QA)		LH		
4002c	Technical Specialist II (Sr. Content Developer)		LH		
4002d	Program Analyst II (Graphic Designer)		LH		
4002e	Program Analyst II (508 and SCORM reviewer)		LH		
	Subtotal				
Reporting and Analysis (FFP)					
4003	Program Analyst III (Data Analyst)		LH		
	Subtotal				
Develop and Maintain Online Resources (T&M)					
4004	Technical Specialist II (LMS Admin, Sr. Content Developer)		LH		
4004a	Program Analyst II (Multimedia Specialist)		LH		
4004b	Program Analyst II (Web Design and Content Developer)		LH		
4004c	Sr. Program Analyst (Course Administrator)		LH		
4004d	Program Analyst II (Issue Resolution)		LH		
4004e	Program Analyst II (Course Testing and QA)		LH		
	Subtotal				
Travel and ODCs (T&M)					
4005	Travel --- 0005a		LO	NTE	$15,000.00
4005a	ODCs --- 0005b		LO	NTE	$65,000.00
	Subtotal			NTE	$80,000.00
Total					

Base Year & All Option Years Total Estimated Price $ _____

(END OF SECTION B)

PART I, SECTION C: DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

PERFORMANCE WORK STATEMENT
MILITARY COMMUNITY AND FAMILY POLICY ONLINE TRAINING SUPPORT

C-1. INTRODUCTION

The Office of the Deputy Assistant Secretary of War for Military Community and Family Policy (MC&FP) supports force readiness and quality of life by providing policies, programs, resources, and outreach that advance the well-being of service members, including the National Guard, Reserve, and Coast Guard; their families, survivors, and other eligible members of the military community.
Specifically, MC&FP:

- Provides policy and program oversight for military and family readiness programs that support the Department of War's mission and the evolving needs of the military community.

- Provides programs, resources, training, and educational products in key areas such as family support, child and youth programs, family advocacy, special needs, relocation assistance, spouse education and career opportunities, mobilization and deployment support, casualty and mortuary affairs, Morale, Welfare and Recreation, resale policy, state liaison activities, and nonprofit partnership.

- Provides online resources, tools, communications, and outreach that connect the military community, leaders, service providers, policymakers, nonprofit entities, and other stakeholders to appropriate support programs and information.

- Supports continuous improvement through innovative practices, process efficiencies, automation, and responsible artificial intelligence-enabled capabilities, where approved by the Government, to streamline operations, reduce resource burdens, and maximize measurable cost savings and cost avoidance.

Title 10, U.S. Code, Chapter 88, Subchapter I, Military Family Programs, is a statutory driver for Online Learning Systems and MilLife Learning. It requires online resources that provide comprehensive information to members of the Armed Forces and their families regarding available benefits and services, including contact information for obtaining specific assistance. This Performance Work Statement (PWS) establishes the requirements for online training support services that are timely, accurate, accessible, user-focused, mission-relevant, and compliant with applicable laws, regulations, policies, cybersecurity, privacy, accessibility, and data protection requirements.

C- 2. SCOPE

The government requires a contractor to provide support services for its learning management system, which consists of the MilLife Learning platform, maintained under a separate contract, and online learning environment https://millifelearning.militaryonesource.mil. The contractor shall support a portfolio of approximately 90–120 online courses, microlearning products, and related learning assets, including new development, updates, maintenance, third-party course support, reporting, accessibility review, and operational support as directed by the Government. The learning environment shall apply, at a minimum, evidence-based adult learning practices, including adult learning theory, Bloom’s Taxonomy, Kirkpatrick’s levels of evaluation,

Merrill's principles of instruction, multimedia learning principles, and Human-Centered Design. The system includes the MilLife Learning platform, Student Information System, User Information System, Blackboard platform, and related tools that support course delivery, learner access, content management, reporting, analytics, communications, and operations. The contractor shall identify, develop, test, and implement AI-enabled tools, workflows, and technologies, as approved by the Government, to streamline operations, reduce duplication, improve productivity, achieve measurable cost savings and cost avoidance while ensuring all products remain accurate, current, accessible, secure, and compliant with applicable requirements.

C-3. BACKGROUND

Planning for MilLife Learning began in 2013, and the system, formerly My Training Hub, launched in 2014 with its first five courses offered in early 2015. As of October 2026, MilLife Learning offers online courses and related resources serving service members, including National Guard, Reserve, and Coast Guard members; families; survivors; service providers; DoW civilians; MC&FP staff; community support organizations; and contractors. On February 26, 2026, consistent with Executive Order 14179, Removing Barriers to American Leadership in Artificial Intelligence, MC&FP's Online Learning Systems team began integrating artificial intelligence into four of the five phases (Analysis, Design, Development and Evaluation) of the ADDIE model. This effort supports the modernization of outdated, manual processes, reduces subject-matter expert review timelines, conserves resources, and delivers measurable cost savings and cost avoidance.

C- 4. APPLICABLE DOCUMENTS AND REFERENCES

C- 4.1. Technical References: Details specific references that must be complied with when developing the Learning Management Program content or products. This list includes Department of War (DoW) Directives and Instructions, Office of Management and Budget memorandums and circulars, public law, Office of the Secretary of War and DoW memorandums, and other policies and forms. (See Appendix 1_PWS_Technical References)

C- 4.2. Internal Content Management System (iCMS) User Guide: This is a Common Access Card (CAC)/External Certificate of Authority (ECA) enabled secure online content management system for all MC&FP websites and applications. iCMS stores, shares, and publishes content to online resources. iCMS and the Oracle Database provide the storage mechanism for most of the content shown on the MC&FP websites. (See Appendix 2_PWS_ Internal Content Management System (iCMS) User Guide and MilLife Learning iCMS User Guide.)

C- 4.3. Military Community and Family Policy Style Guide: This is a PDF version of the online MC&FP Style Guide Application located on the Military Community Outreach Portal. (See Appendices 3.1 and 3.2_PWS_Video and 508 Accessibility Checklists)

C- 4.4. Tasking, Assignments and Reporting (TAR) User Guide: CAC/ECA enabled secure online project management system for development and maintenance of all MC&FP websites, applications and program-specific project management. This allows contractor staff to engage in seamless workflow with complete oversight by Government managers. Provides the Government with notification of all activities for review and approval of work progress/products. (See Appendix 4_PWS_ Tasking, Assignments and Reporting (TAR) User Guide)

C- 4.5. Military Community and Family Policy Supplemental Section 508 Compliance Accessibility Guidelines: (See Appendix 5_PWS Constraints)

C- 4.6. External Certificates of Authority (ECA) Computer Access Tokens: (See Appendix 6_PWS_ Link Vertting SOP). DoW-approved certificate that provides the means for industry partners and external entities to securely communicate with the DoW and authenticate to DoW information systems.

C- 4.7. Constraints: This section lists laws, rules, regulations, standards, technology limitations and other constraints that the Contractor must adhere to or work under. (See Appendix 5_PWS_Constraints)

C- 4.8. Link Vetting Application: The Link Vetting Application was created to support the ability to hyperlink to sources external to the Department of Defense and Military Community & Family Policy by maintaining a listing of approved and disapproved URLs, as well as allowing program managers the ability to request validation of new URLs. (See Appendix6_PWS_ Link Vetting Standard Operating Procedures)

C- 4.9. Chapman Alliance Ratio: The Government considers the Chapman Alliance Ratio as an industry benchmark in estimating the level of effort and costs for curriculum development. This benchmark has been used in developing the Government's requirements and cost estimate.
(See Appendix 7_PWS_Chapman Alliance Ratio)

The table on the following page includes, but is not limited to, URL address and functional description for each MC&FP enclave platform relevant to the learning management program and this PWS. All websites and applications in the MC&FP enclave are supported by the iCMS.

Website/Application	URL	Description
DoD Safe (Secure Access File Exchange)	https://safe.apps.mil/	A secure application to deliver unclassified graphic files, final deliverables, and/or video/audio streams. The application enables authenticated DoW CAC users and guests (unauthenticated users) to securely send and receive large files (up to 8 gigabytes) that are too large to transmit via email.
Application Messaging System (AMS)	http://apps.militaryonesource.mil/AMS	CAC/ECA enabled a secure online application to collect all incoming user feedback from all MC&FP websites and applications. Responses from the webmaster and subject-matter experts are documented and tracked.
Blackboard Learn (pre-production)	https://militarycfp-test.blackboard.com	Blackboard test and pre-production server environment for courseware.
Blackboard Learn (production)	https://militarycfp.blackboard.com	Blackboard's publicly accessible web interface for courseware
Google Analytics	http://www.google.com/analytics/	Third-party, publicly accessible application requiring a login/username. Application is a database for online application statistics for MC&FP websites and applications for use by MC&FP management staff.
Internal Content Management System (iCMS)	http://pre.apps.militaryonesource.mil/icms	CAC/ECA enabled secure online content management systems for all MC&FP websites and applications. The iCMS stores, shares, and publishes content to online resources. The iCMS and Amazon Web Services provide the storage mechanism for most of the content shown on the MC&FP websites.
Link Vetting Application	https://apps.militaryonesource.mil/lva	CAC/ECA enabled secure online hyperlink/URL submission, vetting, and annual re-vetting application.
Military Community and Family Policy Information and Resources Portal	https://apps.militaryonesource.mil/MOS/f?p=328:HOME:109330346671381:	Accessible staff web page providing quick access to MC&FP websites, applications, publications and staff services environments.
MilLife Learning Admin	https://millifelearning.militaryonesource.mil/admin	Administrative access for student information, to include grade reports, course enrollments, student records and student maintenance.
MilLife Learning (pre-production)	https://millifelearning.pre.militaryonesource.mil	MilLife Learning test and pre-production server environment.

MilLife Learning (production)	https://millifelearning.militaryonesource.mil/	MilLife Learning's publicly accessible web interface
Tasking, Assignments and Reporting (TAR)	https://apps.militaryonesource.mil/MOS/f?p=TAR:HOME:203546690743560:	CAC/ECA enabled a secure online project management system for the development and maintenance of all MC&FP websites, applications and program-specific project management. Allows contract technical and content staff to engage in seamless workflow with complete oversight by government managers. Provides government managers with notifications of all activity for review and approval of work progress/products.

C- 5. MAIN OBJECTIVES

Support the learning management system and environment, which includes the MilLife Learning platform and online courses. Support includes creating, implementing and modifying government approved services. These services shall include business process management, product development, systems analysis, training support services, program management, and administrative support services for the learning management system.

C- 5.1. Training Products: Develop, deliver, modify, and maintain original, existing, and Government-accepted third-party online training products.

C- 5.2. Training Support Services: Provide planning, analysis, design, development, implementation, evaluation, maintenance, and continuous improvement support for online training products and related initiatives.

C- 5.3. Business Process Management: Develop, document, streamline, and improve business processes that support instructional systems design, curriculum development, content maintenance, standardization, program operations, and applicable DoW and MC&FP policy requirements.

C- 5.4. Reporting, Metrics, and Quality Control: Provide reporting, analysis, metrics, quality control, and data-informed recommendations to measure program, platform, and course effectiveness.

C- 5.5. Operations and Direct Support: Deliver daily operational, technical, graphic, usability testing, product development, program management, project management, administrative, and logistical support for MilLife Learning resources.

C- 5.6. Innovation and AI-Enabled Efficiencies: Identify, develop, test, and implement Government-approved automation, artificial intelligence-enabled tools, and process improvements to reduce manual work, improve productivity, support cost savings, and achieve cost avoidance.

C-5.7. COMPLIANCE WITH UNBIASED ARTIFICIAL INTELLIGENCE (AI) PRINCIPLES

(a)Definitions. As used in this contract—

Large Language Model (LLM) means a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.

Unbiased AI Principles means the principles of "Truth-seeking" and "Ideological Neutrality," as established in Executive Order 14319 and defined below.

Truth-seeking means the LLM is truthful in responding to user prompts seeking factual information or analysis. The LLM prioritizes historical accuracy, scientific inquiry, and objectivity, and acknowledges uncertainty where reliable information is incomplete or contradictory.
Ideological Neutrality means the LLM is a neutral, nonpartisan tool that does not manipulate responses in favor of ideological dogmas.
Significant Modifications means any changes made by the contractor or subcontractor to the AI model that could reasonably be expected to alter its adherence to the Unbiased AI Principles. For the purposes of compliance with the Unbiased AI Principles, this definition includes, but is not limited to, changes to training data and model architecture, and alterations to filtering and content moderation.
(b)
Contractor Obligation. The contractor must ensure that any LLM or other AI model provided under this contract complies with the Unbiased AI Principles throughout the period of performance. The documentation submitted in the contractor's proposal represents the baseline for this compliance and will be documented in the awarded contract. The contractor must provide the Government with updated documentation when significant modifications are made to the AI model.
(c)
Materiality and Non-Compliance.
1.
Compliance with Unbiased AI Principles is a material requirement of the contract.
2.
In the event the LLM output appears to violate the Unbiased AI Principles, the Contracting Officer will provide written notification to the contractor. The Contractor must, within 15 business days, investigate the matter and provide a written response to the Contracting Officer detailing the findings, whether there was a violation, the most likely cause of the violation, the contractor's proposed corrective action(s) to remedy the violation, and the contractor's proposed timeline to complete the corrective action(s).
(d) Subcontracts. The contractor must insert the substance of the mandatory requirements for compliance with the Unbiased AI Principles in all subcontracts at any tier for the acquisition, development, or integration of LLMs to be used or delivered in the performance of this contract.

C- 6. GENERAL REQUIREMENTS

The contractor shall furnish all work, management, supervision, labor and materials necessary to ensure the effective and efficient performance of functions identified throughout this PWS. The contractor shall be capable of providing flexible, responsive, and high-quality services and support.

C- 6.1. Security Requirements. The contractor shall ensure that all personnel with access to Government systems, applications, data, or records are properly trained, credentialed, and informed of their responsibilities for protecting Government information. Contractor personnel shall complete required training in cybersecurity, privacy, PII, ethics, and system access before accessing Government systems or data, and shall provide training certificates or evidence of compliance upon request.

> **C- 6.1.1.** Personnel performing cybersecurity, information technology, system administration, data access, or related functions shall comply with applicable DoD instruction 8140-series cyber workforce qualification requirements or other Government-directed standards. The contractor shall safeguard all Government data, system information, user information, course records, source files, and sensitive information from unauthorized access, disclosure, modification, or misuse.

C- 6.1.2. The contractor shall use only Government-approved systems, tools, repositories, and artificial intelligence-enabled capabilities when handling Government information. The contractor shall not enter, upload, process, or store Government data, PII, sensitive information, source files, or non-public program information in non-Government-approved AI tools or external systems.

C- 6.1.3. Safeguarding of Covered Information and Cyber Incident Reporting. The contractor shall safeguard Government data and Controlled Unclassified Information (CUI) in accordance with DFARS 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, and shall implement the security requirements of NIST SP 800-171, Protecting Controlled Unclassified Information in Nonfederal Systems and Organizations, on all contractor information systems used to process, store, or transmit Government data, CUI, or Personally Identifiable Information (PII) under this PWS. This includes all sensitive background investigation and personnel security data collected for human resources and security purposes, which must be protected against unauthorized disclosure. The contractor shall report any known or suspected cyber incident affecting Government data or systems to the Contracting Officer's Representative (COR) and MC&FP's Chief Information Officer (CIO) within 72 hours of discovery and shall preserve affected systems and data for Government review upon request.

C- 6.1.4. Cybersecurity, Privacy, and CUI Training. The contractor shall ensure that all personnel complete the DoD Cyber Awareness Challenge, Identifying and Safeguarding Personally Identifiable Information (PII) training, and DoD Controlled Unclassified Information (CUI) training before accessing Government systems or data, and annually thereafter. The contractor shall maintain records of completed training and provide evidence of compliance through MC&FP's Personnel and Access Maintenance (PAM) application.

C- 6.1.5. Personnel Security, Position Designation, and Suitability. All contractor personnel are subject to Department of Defense (DoD) Personnel Security Program requirements. As documented in the Position Designation Records (PDRs), all positions under this contract are designated as High Risk public trust positions. Contractor personnel must undergo and successfully maintain a favorable Tier 4 background investigation, which is the minimum investigation level required. Prior to onboarding, contractor personnel must complete the appropriate Optional Form (e.g., OF-306, Declaration for Federal Employment). A preliminary review for potentially derogatory information (derogatory review) shall be conducted prior to authorizing interim access or a final suitability determination. Adjudication of derogatory information and overall suitability and fitness determinations shall be applied in accordance with the standards and criteria outlined in 5 CFR 731.

C- 6.1.6. NBIS and eApp Submission Procedures (MC&FP Personnel Security). The contractor shall coordinate directly with the MC&FP Personnel Security (PERSEC) office to initiate all background investigations. Contractor personnel are required to complete and submit their background investigation applications via the electronic Application (eApp) through the National Background Investigation Services (NBIS) system. The contractor shall ensure all applicant submissions are accurate, complete, and finalized within the specific timelines and instructional guidelines established by MC&FP PERSEC.

C- 6.1.7. Contractor Facility Security Officer (FSO) and Security Team Responsibilities. The contractor's designated FSO and internal security team shall serve as the primary liaisons to the MC&FP PERSEC office. The FSO and security team are strictly responsible for providing MC&FP PERSEC with complete, accurate, and timely onboarding packages for all personnel prior to system or facility access. Responsibilities include, but are not limited to:

I. Pre-screening candidates and ensuring the accurate completion of required forms (e.g., OF-306).

II. Initiating and tracking NBIS/eApp submissions and coordinating fingerprinting requirements.
III. Monitoring the status of personnel investigations and Continuous Vetting (CV) within the Defense Information System for Security (DISS), NBIS, or successor systems.
IV. Promptly reporting any locally discovered adverse or derogatory information regarding contractor personnel to MC&FP PERSEC.
V. Immediately notifying MC&FP PERSEC of any personnel resignations, terminations, or changes in employment status to ensure the timely deactivation of clearances, system access, and credentials.

C- 6.1.8. Action on Derogatory Information and Unsuitable Determinations. If the Government identifies derogatory information during the preliminary derogatory review, the formal background investigation, or through Continuous Vetting (CV) that renders a contractor employee unsuitable or unfit, the Government reserves the right to deny, suspend, or revoke interim or final access to Government systems, facilities, and data. In accordance with the Privacy Act, specific details regarding the derogatory information will not be disclosed to the contractor company. If an individual (including a counselor) is found not suitable: The CNIC Contracting Officer (CO) or Contracting Officer's Representative (COR) will provide notification via a letter to the contractor of the adjudication results. There are currently no waivers to the background check/suitability process, and all contractor personnel designated for work under this contract must be approved by the Program Manager (PM). Upon notification of an unfavorable determination, the contractor shall immediately remove the affected individual from performing any duties under this contract. The contractor must immediately revoke the unsuitable individual's access to all Government information, and they shall not be permitted to work on this contract in any capacity. The contractor shall facilitate any adjudication dispute and appeal requests, including communication with the Government, on behalf of individuals that the contractor submits for background/suitability checks. All final suitability and fitness determinations remain at the sole discretion of the Government.

C- 6.1.9. Continuous Vetting. In alignment with the Trusted Workforce (TW) 2.0 framework, the legacy system of periodic reinvestigations is replaced by Continuous Vetting (CV). All contractor personnel shall be enrolled in and subject to CV protocols once their initial background investigation is favorably adjudicated. Enrollment and monitoring will be managed through the Defense Information System for Security (DISS), the National Background Investigation Services (NBIS), or successor Government systems of record.

C- 6.1.10. Credentialing and Access. In accordance with Homeland Security Presidential Directive 12 (HSPD-12) and Federal Information Processing Standards Publication 201-3 (FIPS 201-3), contractor personnel must receive a favorable interim or final suitability determination and successfully pass an FBI fingerprint check prior to the issuance of a Common Access Card (CAC) and the granting of physical or logical access. The contractor shall immediately return or deactivate credentials when access is no longer required, including in the event of an unfavorable suitability determination.

C- 6.1.11. Common Access Card (CAC) and External Certificate of Authority (ECA). The contractor shall obtain and maintain a valid DoD-approved CAC or ECA credential, as applicable, for personnel requiring access to DoD or MC&FP information systems, in accordance with Appendix 9 _PWS_Computer Access Tokens. The contractor shall submit System Authorization Access Requests (DD Form 2875) as required for system access and shall immediately return or deactivate CAC/ECA credentials when access is no longer required, upon separation of the individual, or at contract completion, and shall provide a written accounting of issued credentials upon Government request.

C- 6.1.12. Cybersecurity and System Usage. Personnel performing cybersecurity, information technology, or related functions shall comply with applicable DoD instruction 8140-series cyber workforce qualification standards. The contractor shall use only Government-approved systems, tools, and systems when handling Government information. The contractor shall not use, install, or permit covered telecommunications equipment or services, covered applications, or other technology prohibited under the FAR, DFARS, or the Federal Acquisition Supply Chain Security Act on any information system, device, or account used to perform this PWS.

C- 6.1.13. Privacy Impact Assessments and Systems of Records Notices. The contractor may have access to sensitive, privileged, and confidential Government data, information, and materials protected by the Privacy Act of 1974 and remain the sole property of the Government. The contractor shall support the Government's maintenance of Privacy Impact Assessments (PIAs) and System of Records Notices (SORNs) and shall promptly notify the Government of any new, modified, or discontinued collection, use, storage, or sharing of PII that may require a PIA or SORN update. Unauthorized disclosure of Privacy Act-covered or CUI materials is a criminal offense.

C- 6.2. Intellectual Property Rights. The existence of any patent, patent application, or other intellectual property right that encumbers any deliverable shall be disclosed in writing accompanying the delivery. If no such disclosures are provided, the data rights provisions in DFARS 252.227-7013 and 252.227-7015 apply.

C- 6.3. Section 508 (WCAG 2.0) Compliance and Validation Requirements. The contractor shall adhere to Section 508 of the Rehabilitation Act of 1973, as amended (29 U.S.C. 794d) and Revised Section 508 Standards in 36 Code of Federal Regulations (CFR) § 1194.1 and Appendices A, C, and D. Section 508 requires that when Federal agencies develop, procure, maintain, or use Information and Communications Technology (ICT), Federal employees with disabilities have access to and use of information and data that is comparable to the access and use by Federal employees who are not individuals with disabilities. Section 508 also requires that individuals with disabilities, who are members of the public seeking information or services from a Federal agency, have access to and use of information and data that is comparable to that provided to the public who are not individuals with disabilities, unless an undue burden would be imposed on the agency. Covered deliverables include, but are not limited to, online training, electronic documents, multimedia, graphics, audio, video, websites, applications, third-party courseware, job aids, guides, and supporting products.

The contractor shall adhere to DoD Manual (DoDM) 8400.01 (November 14, 2017), "Accessibility of Information and Communications Technology (ICT)". DoDM 8400.01 further implements Section 508 of the Rehabilitation Act of 1973 and Subpart 39.2 of the FAR via the assignment of responsibilities and procedures. DoDM 8400.01 ensures that individuals with disabilities have access to and use of ICT that the DoD develops, acquires, maintains, or uses. It further ensures that the access and use of ICT are comparable to what individuals without disabilities are provided. The contractor shall ensure that the list is easily accessible by typical users beginning at the time of award.

The contractor shall provide personnel with the appropriate certifications and/or training to perform the functional role assigned. The Government is not responsible for providing funding or training for contractor personnel to obtain a certificate and/or to take training that would otherwise be required in advance of employment to perform that functional role. Exceptions to certification and training requests may be considered when the required knowledge to perform the role advances beyond the current operational or technical environment or if the certification and training is not available to the public.

C- 6.3.1. The contractor shall incorporate accessibility throughout design, development, testing, delivery, maintenance, and remediation. The contractor shall identify accessibility issues, notify the Government of required updates or remediation, provide recommendations and levels of effort as needed, and ensure online deliverables are reviewed for accessibility before Government acceptance.

C- 6.4. Plain Language Requirements. The contractor shall ensure that all written content and learner-facing materials produced or maintained under this contract comply with the Plain Writing Act of 2010 and applicable DoW and MC&FP guidance on clear communication. Covered deliverables include, but are not limited to, online training content, course descriptions, learner guides, job aids, FAQs, policy summaries, email templates, multimedia scripts, assessments, and supporting documentation.

C- 6.4.1. The contractor shall apply plain-language principles during the design, development, testing, delivery, maintenance, and remediation of all deliverables; measure and document readability using industry-standard metrics (for example, Flesch-Kincaid Grade Level or equivalent); and meet Government-specified readability targets for each content type; content shall be structured to support efficient and effective translations for diverse audiences, where required by the government.

C- 7. TASK REQUIREMENTS

The contractor shall support a portfolio of approximately 90–120 online courses and related learning assets, including new development, updates, maintenance, microlearning products, third-party course support, reporting, accessibility review, and operational support as directed by the Government. Contractor shall develop, manage, and sustain the MilLife Learning portfolio in accordance with statute, federal policy, and industry best practices. In all AI-assisted workflows and practices used to improve curriculum design, development, evaluation, implementation, reporting, and maintenance, the contractor will adhere to Executive Order (E.O.) 14319, Preventing Woke AI in the Federal Government, and Office of Management and Budget (OMB) Memorandum M-26-04, Increasing Public Trust in Artificial Intelligence Through Unbiased AI Principles. All AI-generated or AI-augmented training outputs must measurably demonstrate improved productivity, quality, cost savings, and cost avoidance while maintaining strict factual accuracy and ideological neutrality.

C- 7.1. Program and Project Management. The contractor shall manage contract execution, staffing, schedules, deliverables, risks, meetings, levels of effort, quality control, documentation, and coordination with Government stakeholders. The contractor shall maintain a Government-approved Quality Control Plan and ensure timely communication of issues, risks, and performance concerns. The contractor shall review and update at least 50 percent of the course portfolio every two years, unless otherwise directed by the Government. The contractor shall support development of new or substantially revised learning products based on evidence-based research, learner feedback, statutory requirements, policy changes, or Government direction.

C- 7.2. Curriculum Design and Training Product Development. The contractor shall analyze, design, develop, modify, implement, and maintain online training products using Government-approved instructional design processes and evidence-based adult learning practices. Appendix 6 and Appendix 7 provide additional guidance for the instruction design process. Training products may include eLearning courses, microlearning modules, videos, tutorials, job aids, guides, infographics, performance support tools, and Government-accepted third-party content. The contractor shall support a portfolio of microlearning products that deliver focused, accessible, task-specific learning in concise formats aligned to learner needs, course objectives, and MC&FP program requirements.

C- 7.3. Instructional Design, Learning Evaluation, and Content Quality. The contractor shall conduct analysis, design, development, implementation, evaluation, and maintenance activities for online and hybrid learning products. The contractor shall develop learning objectives, instructional strategies, assessment tools, evaluation methods, design documents, project plans, pilots, testing, and revisions. The contractor shall validate content for accuracy, completeness, usability, accessibility, learner relevance, and alignment with Government-approved requirements. Expertise may include, as applicable and approved by the Government, AI-enabled instructional design, generative-AI content prototyping, adaptive learning approaches, learning analytics, SCORM/xAPI integration, microlearning, competency-based design, UX, WCAG accessibility, rapid prototyping, and immersive learning technologies.

C- 7.4. Content Maintenance and Statutory Alignment. The contractor shall review, update, and maintain online training, resources, course materials, metadata, links, multimedia, and related content to ensure products remain accurate, current, accessible, and aligned with applicable law, regulation, policy, and Government direction, including covered benefits and services addressed through MC&FP online resources.

C- 7.5. LMS Operations and Technical Support. The contractor shall support MilLife Learning's daily operations, course configuration, pre-production testing, production release, SCORM compliance, user access, system functionality, course delivery, source-file storage, knowledge repositories, operational documentation, help desk consultation, service notices, and coordination with Government and contractor technical teams.

C- 7.6. Reporting, Metrics, Analytics, and Quality Control. The contractor shall collect, analyze, and report data on course activity, learner progress, completions, evaluations, satisfaction, effectiveness, utilization, quality control, and program performance. The contractor shall provide Government-approved reports, metrics, findings, and recommendations to improve training products, data collection, decision-making, and program effectiveness.

C- 7.7. AI-Enabled Innovation and Business Process Modernization. The contractor shall identify, develop, test, implement, and document Government-approved artificial intelligence-enabled tools, automation, workflows, and business process improvements that streamline course development, content review, SME coordination, reporting, maintenance, link management, quality control, microlearning development, and administrative operations. These efforts shall reduce manual work, improve productivity, decrease duplication, support measurable cost savings, and achieve cost avoidance.

C- 7.8. Accessibility, Security, Privacy, and Compliance.
The contractor shall ensure applicable deliverables, systems support activities, training products, documents, multimedia, and online resources comply with Section 508, cybersecurity, privacy, PII, records management, branding, style, data protection, and other applicable Federal, DoW, and MC&FP requirements. The contractor shall ensure that the required personnel complete applicable access, cybersecurity, PII, ethics, and system-related training before performing work requiring such access.

C- 8. PERSONNEL REQUIREMENTS

Contractor personnel working under this PWS shall be United States citizens and be able to effectively interface and communicate with civilian and military personnel at all levels. Demonstrated knowledge in military culture and experience in working with military support programs is preferred.

C- 8.1. MILITARY SPOUSE POSITION FLEXIBILITY AND RETAINMENT

C- 8.1.1. The contractor shall ensure remote-friendly positions are available for personnel who are military spouses and are subject to a reassignment to a new duty station or Permanent Change in Station (PCS) of their service member.

C- 8.2.2. The successful awardee shall hire all qualified military spouses who worked under the previous, incumbent contract into available positions under the new award. If the successful awardee is the incumbent, they shall retain all qualified military spouses under the new award.

C- 8.2. KEY PERSONNEL

For the purposes of this PWS, "Key Personnel" are certain skilled, experienced professionals and/or technical personnel, such as those directly responsible for management of the contract, or those personnel whose professional/technical skills are certified essential for successful performance of the requirements of this PWS. Resumes for key personnel positions shall be provided at proposal submission for evaluation.

C- 8.2.1. Key personnel assigned to perform under this PWS shall meet the education, experience, and background requirements for their assigned positions, and possess the skill mix necessary to perform efficiently, reliably, and professionally. The contractor shall certify that all proposed key personnel information is true and complete, and that the named individuals are available at the start of the contract.

C- 8.2.2 Military Spouse Hiring Preference

The successful awardee shall make good-faith efforts to hire all qualified military spouses who worked under the previous, incumbent contract into available positions under the new award. If the successful awardee is the incumbent contractor, it shall retain all qualified military spouses under the new award. "Qualified" means a military spouse who:

1. Meets the minimum education, certification, technical experience, and security clearance requirements specified in the awardee's proposal (or as otherwise required by this contract); and
2. Has demonstrated baseline competency in the performance of the required tasks such that the individual can perform the work with no more than minimal, position-specific orientation or training (i.e., does not require major retraining).

"Available positions" means any vacant, newly established, or continuing labor category or position on the successor contract that the contractor seeks to staff, excluding positions that will be filled by the contractor's existing and legitimate bona fide personnel (non-military-spouse employees) who have been continuously employed by the contractor for at least three (3) months prior to the date of award. The contractor shall not create artificial or pretextual new hires immediately prior to award for the purpose of reducing the number of available positions under this provision.

If the successor contract requires fewer full-time equivalents (FTEs) than the predecessor contract, the contractor's obligation under this section shall apply only up to the total number of authorized positions under the successor contract.

Within thirty (30) days after contract award (or as otherwise directed by the Contracting Officer), the contractor shall provide the Contracting Officer a written report identifying:

I. All qualified military spouses from the predecessor contract;
II. The available positions offered to each; and
III. The outcome of each offer (accepted, declined, or other disposition).

C- 8.3. KEY PERSONNEL POSITIONS

The contractor shall have the following minimum qualifications and demonstrated experience in the following key positions.

C- 8.3.1. PROGRAM MANAGER / CONTRACT MANAGER

I. Primary Responsibility: Manage overall contract performance, staffing, schedule, deliverables, risk, quality control, cost awareness, subcontractor performance, and coordination with the Contracting Officer, Contracting Officer's Representative (COR), and designated Government personnel.

II. Minimum Experience: Bachelor's degree in business, management, education, instructional technology, information systems, or related field; and at least eight years of relevant program or contract management experience, including management of Government contracts or complex service delivery efforts.

III. Preferred Qualifications: Master's degree, PMP or equivalent project/program management certification, experience managing online learning, training, technology, or federal service contracts.

IV. Substitution Requirement: Substitution requires prior Government approval and submission of a proposed replacement with qualifications equal to or greater than the departing key person.

V. Availability Requirement: Must be available at contract start and remain sufficiently engaged to ensure timely contract execution, issue resolution, and Government coordination.

C- 8.3.2. LEAD INSTRUCTIONAL SYSTEMS DESIGNER / CURRICULUM LEAD

I. Responsibilities: Lead curriculum strategy, instructional systems design, adult learning application, learning objectives, course architecture, microlearning standards, HCD application, evaluation alignment, instructional quality, and SME coordination across MilLife Learning products.

II. Experience: At least seven years of relevant instructional design or curriculum development experience, including experience leading online learning design for adult or professional learners.

III. Qualifications: Bachelor's degree in instructional systems design, curriculum development, education, learning technology, or a related field. Master's degree preferred. Demonstrated experience with ADDIE, Bloom's Taxonomy, Kirkpatrick evaluation, Merrill's principles of instruction, multimedia learning principles, microlearning, SCORM-compliant courseware, and online course development tools.

IV. Substitution Requirement: Substitution requires prior Government approval. The contractor shall submit a complete resume and support documentation demonstrating that the proposed replacement meets or exceeds the departing key person's qualifications, experience, and availability.

V. Availability Requirement: Must be available to oversee instructional design standards, curriculum modernization, course development, content updates, SME reviews, and quality reviews throughout performance.

C- 8.3.3. DEPUTY INSTRUCTIONAL SYSTEMS DESIGNER / COURSE PRODUCTION LEAD

I. Responsibilities: Manage course production workflow, development schedules, content updates, version control, production coordination, SME review cycles, microlearning production, course revisions, and timely delivery of online learning products.

II. Experience: At least five years of relevant instructional design, eLearning development, curriculum production, or courseware development experience, including experience coordinating multiple course development or maintenance efforts.

III. Qualifications: Bachelor's degree in instructional design, education, curriculum development, learning technology, communications, or a related field. Demonstrated experience with online course authoring tools, multimedia coordination, course documentation, content maintenance, accessibility considerations, and adult learning design.

IV. Substitution Requirement: Substitution requires prior Government approval. The contractor shall submit a complete resume and support documentation demonstrating that the proposed replacement meets or exceeds the departing key person's qualifications, experience, and availability.

V. Availability Requirement: Must be available to support daily course production, content maintenance, stakeholder coordination, development timelines, review cycles, and delivery tracking.

C- 8.3.4. LEARNING MANAGEMENT SYSTEMS / TECHNICAL OPERATIONS LEAD

I. Responsibilities: Manage LMS technical operations support, course configuration, pre-production testing, production release, SCORM compliance, platform coordination, user access support coordination, source-file storage, service notices, troubleshooting, and operational documentation.

II. Experience: At least five years of experience supporting learning management systems, online training platforms, course publishing, system operations, or related technical learning environments.

III. Qualifications: Bachelor's degree in information systems, instructional technology, learning systems, computer science, or a related field. Demonstrated experience with Blackboard or comparable LMS platforms, SCORM/xAPI, course testing, pre-production and production environments, technical documentation, help desk coordination, and Federal or DoW system access requirements.

IV. Substitution Requirement: Substitution requires prior Government approval. The contractor shall submit a complete resume and supporting documentation demonstrating that the proposed replacement meets or exceeds the departing key person's qualifications, experience, and availability.

V. Availability Requirement: Must be available to support daily LMS operations, testing, publishing, troubleshooting, user support coordination, and communication with Government and contractor technical teams.

C- 8.3.5. AI AND BUSINESS PROCESS MODERNIZATION LEAD

I. Responsibilities: Lead identification, development, testing, implementation, documentation, and measurement of Government-approved AI-enabled tools, automation, workflows, and business process improvements that reduce manual work, streamline operations, improve productivity, and support measurable cost savings and cost avoidance.

II. Experience: At least five years of experience in business process improvement, digital modernization, data-informed process analysis, workflow automation, learning technology modernization, or related technology-enabled efficiency initiatives.

III. Qualifications: Bachelor's degree in business process management, information systems, data analytics, instructional technology, artificial intelligence, automation, systems engineering, or a related field. Demonstrated experience with process mapping, workflow redesign, responsible AI or automation implementation, performance measurement, cost avoidance analysis, and data protection requirements.

IV. Substitution Requirement: Substitution requires prior Government approval. The contractor shall submit a complete resume and support documentation demonstrating that the proposed replacement meets or exceeds the departing key person's qualifications, experience, and availability.

V. Availability Requirement: Must be available to support continuous process improvement, AI-enabled development, automation planning, modernization initiatives, and reporting on efficiencies, cost savings, and cost avoidance.

C- 8.3.6. QUALITY, ACCESSIBILITY, AND ANALYTICS LEAD

I. Responsibilities: Lead quality assurance, Section 508 compliance coordination, course evaluation, reporting, metrics, data integrity, learner feedback analysis, technical editing oversight, and recommendations for continuous improvement.

II. Experience: At least five years of experience supporting quality assurance, accessibility, training evaluation, reporting, analytics, data collection, or performance improvement for online learning, education, or digital products.

III. Qualifications: Bachelor's degree in education, evaluation, data analytics, quality management, accessibility, instructional technology, communications, or related field. Demonstrated experience with Section 508 requirements, accessible eLearning, course evaluation methods, learner satisfaction analysis, reporting dashboards, quality control procedures, technical editing, and Federal reporting requirements.

IV. Substitution Requirement: Substitution requires prior Government approval. The contractor shall submit a complete resume and support documentation demonstrating that the proposed

replacement meets or exceeds the departing key person's qualifications, experience, and availability.

V. Availability Requirement: Must be available to support deliverable reviews, accessibility checks, data analysis, quality control, reporting cycles, performance metrics, and improvement recommendations.

C- 8.4. NON-KEY PERSONNEL

The contractor shall provide sufficient qualified non-key personnel in performance of this PWS, including project coordination, instructional design, course development, content maintenance, technical editing, multimedia development, graphic design, administrative support, logistics, reporting, accessibility support, AI-enabled modernization support, and direct support services. Non-key personnel shall possess the education, experience, certifications, and technical skills necessary to perform assigned work efficiently, reliably, and professionally. Resumes for non-key personnel are not required to be submitted to the Government for evaluation.

C- 9. DELIVERABLES

Military Community and Family Policy Deliverables Table				
Deliverable	**Key Parameters**	**Frequency**	**Medium/Format**	**Submit to**
Kick-Off Meeting	Contractor brief of staff, processes, quality assurance, deliverables, formats for reporting and scheduling due dates for deliverables.	Within 5 business days of the award	In-person Meeting/Briefing	COR and designated MC&FP personnel
Quality Control Plan	Describe internal controls, self-inspection, quality review process, staffing controls, issue resolution, and compliance with the PWS and QASP. Task 6 and Task 7	Draft due within 10 business days of award; updates as directed	MS Word, PDF, or approved format	COR and designated MC&FP personnel
AI Modernization and Cost Avoidance Report	Summarize AI-enabled activities, process improvements, productivity gains, reduced manual work, reduced SME review time, cost savings, cost avoidance, risks, and recommendations. Task 7.7	Quarterly or as directed	MS Word, Excel, PowerPoint, dashboard, or approved format	COR and designated MC&FP personnel
Microlearning Portfolio Plan	Identify courses, topics, or resources recommended for microlearning development or conversion; include rationale, target audience, learning objective,	Annually, updates as directed	MS Word, Excel, PowerPoint, or approved format	COR and designated MC&FP personnel

	format, schedule, and expected benefit. Task 7.2, .7.3			
Standard operating procedures (e.g., user guides, administration guides, processes) and associated forms)	Update existing standard operating procedures and forms, and develop new ones as directed by the Government.	As directed by the government.	Electronically in MS Word, Excel, PowerPoint, PDF or approved media.	COR and designated MC&FP personnel
MilLife Learning Analysis Reporting	Summary and analysis of the usage of online training, and active user status	Quarterly	Electronically in MS Word, Excel, PowerPoint, PDF or approved media.	COR and designated MC&FP personnel
Course Reports	Summary and analysis of usage and trends by program course on MilLife Learning compared to previous months, or as directed by the Government	Monthly	Electronically in MS Word, Excel, PDF or approved media.	COR and designated MC&FP personnel
Course Evaluation Reports	Summary of course performance as it pertains to training objectives and requirements.	Quarterly	Electronically in MS Word, Excel, or approved media.	COR and designated MC&FP personnel
Weekly Training Support Status Report	Summary of new, in-development, and recently completed training support tasks through initiation to product launch. This also includes third-party hosted courses and other tasks as assigned	Weekly	Electronically in MS Word, Excel, or approved media.	COR and designated MC&FP personnel
Program Development Project Plan	Based on the criteria found in Task 6 and Task 7	Project Initiation phase, and upon any significant updates or changes to the training project	Electronically in MS Word, Excel, PowerPoint or approved media.	COR and designated MC&FP personnel

e-Learning Plan for the Learning Management Program	Based on the criteria found in Task 6 and Task 7	Annually or as modifications are made to the existing plan	Electronically in MS Word, Excel, PowerPoint or approved media.	COR and designated MC&FP personnel
Source File Transfer and Archive Status Report.	Summary of the status of finalized creative services and course source files transfer to the Government-identified alternate storage facility (e.g. Akamai), including file name, associated source files, and URL. Task 7.5, 12.2	Per Curriculum	Electronically in MS Word, Excel, or a government-approved application	Designated MC&FP personnel
Evaluation Plan	Based on the criteria specified in Task 7.3, 7.6	As agreed with a prescribed date by the Government-approved POC, and as modifications are made to the existing plan	Electronically in MS Word, Excel, PowerPoint or approved media	Designated MC&FP personnel
Operations and Management Guide	Based on the criteria found in Task 6 and Task 7	As agreed with a prescribed date by the Government-approved POC, and as modifications are made to the existing plan	Electronically in MS Word, Excel, PowerPoint or approved media (one page executive style where applicable)	Designated MC&FP personnel
Business Process Implementation Plan	Based on the criteria found in Task 6 and Task 7	As agreed with a prescribed date by the Government-approved POC, and as modifications are made to the existing plan	Electronically in MS Word, Excel, PowerPoint or approved media (one page executive style where applicable)	Designated MC&FP personnel
Deliverables based on tasks and products	Deliverables can include platform-related content and content areas	As agreed with a prescribed date by the Government-approved POC	As negotiated, designated and approved.	COR and designated MC&FP personnel

AI Tool Register or approval log	Identifies Government-approved AI-enabled tools, workflows, use cases, data restrictions, approval status, outputs, efficiency gains, risks, and cost-saving or cost-avoidance outcomes			
Annual/Final Performance Report	Report which summarizes objectives achieved, significant issues, problems and recommendations to improve the process in the future.	Due 10 days prior to the end of the Period of Performance	Electronically in MS Word, Excel, PowerPoint or approved media	COR and designated MC&FP personnel

C- 10. OTHER REQUIREMENTS

This section identifies administrative, operational, and compliance requirements that apply across the performance of this PWS. These requirements address travel, Government-furnished information, place and period of performance, standards of conduct, and other direct costs. The contractor shall comply with these requirements while performing all authorized work under this PWS.

C- 10.1. Travel. The contractor shall conduct travel only when authorized by the Government and necessary to perform the requirements of this PWS, including meetings, reviews, planning sessions, training support, or other Government-directed activities. A travel request template will be provided upon award to the successful offeror.

The contractor will be reimbursed for authorized travel made in association with the performance of this contract to include per diem, lodging, airfare, rental car, and incidental expenses. All travel must be pre-approved by the COR or Contract Officer. Travel requests shall be submitted for approval at least two weeks in advance, preferably longer.

C- 10.2. Government Furnished Information. All Government-furnished information, materials, data, records, files, and products provided to the contractor during performance shall remain the property of the Government and shall be protected, used only for authorized contract purposes, and returned or disposed of as directed at contract completion.

C- 10.3. Place of Performance. The primary place of performance is anticipated to be the contractor's place of business within the United States, unless otherwise directed or approved by the Government.

C- 10.4. Period of Performance. The period of performance shall include one twelve-month base period and four one-year option periods.

C- 10.5. Standards of Conduct. Contractor personnel shall maintain professional standards of conduct, competency, appearance, integrity, and identification while performing under this PWS. Contractor personnel shall safeguard Government property, information, systems, records, and facilities; comply with applicable security, privacy, ethics, and facility-access requirements; and clearly identify themselves as contractor personnel when their status is not apparent.

The contractor shall take appropriate action to address employee misconduct, performance concerns, security violations, or failure to comply with applicable requirements. The Government may require removal of contractor personnel from Government worksites, systems, or contract performance when conduct, performance, suitability, or security concerns warrant such action.

C- 10.6. Other Direct Costs. Other Direct Costs (ODCs) shall be incurred only when authorized by the Government and funded under the appropriate contract line item. ODCs may include Government-approved materials, subscriptions, software, licensing, stock imagery, accessibility tools, AI-enabled tools, or other approved resources necessary to perform PWS requirements. The contractor shall obtain required approvals before incurring ODCs and shall provide supporting documentation with applicable invoices or reports.

C- 11. REPORTING REQUIREMENTS

C- 11.1. Tasking, Assignment and Reporting Tracking. The contractor shall use the Government-designated tasking, assignment, reporting, and document-management systems to receive tasks, document workflow, track time, and submit deliverables for Government review and approval. Access will be granted after time of award.

C- 11.2. Monthly Meetings. The contractor shall meet with the Government monthly, unless otherwise directed, to review project status, budget execution, deliverables, risks, performance, recommendations, emerging trends, and upcoming requirements. Meetings will be conducted via Microsoft Teams and occasional in-person, if requested by the government.

C- 11.3. Status and Financial Reporting. The contractor shall provide monthly, quarterly, annual, and final reports as directed by the Government. Reports shall include, as applicable, hours expended by individual, labor category, task, CLIN, and PWS reference; funds expended; work completed; milestones and deliverables; issues, risks, and recommended resolutions; planned activities; estimated hours for upcoming work; remaining hours; and recommendations for process improvement, cost savings, and cost avoidance.

C- 11.4. Final Report. At the conclusion of each period of performance, the contractor shall provide a final report summarizing objectives achieved, deliverables completed, significant issues, lessons learned, and recommendations for future improvements.

C- 12. CONTINUITY OF SERVICE

The contractor recognizes that the services under this contract are vital and must be continued without interruption. At any time during the final option year, services may be selected to transition at any point in the period of performance, with all remaining services beginning transition no later than 90 days prior to the end of the period of performance, so that a successor may continue them. The Government anticipates that most services will begin transition 90 days prior to the end of the period of performance.

C- 12.1. Support uninterrupted performance of services during contract start-up, closeout, transition, or transfer to the Government or a successor contractor. Upon written direction from the Contracting Officer, the contractor shall provide phase-in and phase-out support, cooperate in transition planning, and maintain services at the required level of performance during the transition period. The transition plan shall be completed within ten days by the successor.

C- 12.2. Ensure all Government-owned files, course materials, source files, records, reports, documentation, system information, and related products are maintained in Government-approved storage locations and are available for transfer as directed. The contractor shall provide sufficient experienced personnel, knowledge

transfer, documentation, and transition support to promote an orderly, efficient, and timely transfer of responsibilities.

C- 12.3. Reasonable, authorized phase-in or phase-out costs shall be handled in accordance with the contract terms and applicable funding.

(END OF SECTION C)

PART I, SECTION D: PACKAGING AND MARKING- NOT APPLICABLE

(END OF SECTION D)

PART I, SECTION E: INSPECTION AND ACCEPTANCE

E-1. SURVEILLANCE, INSPECTIONS, AND ACCEPTANCE. All solutions, products, manuals, reports and deliverables must be approved by Technical Representative as applicable, then delivered to the COR for final approval as necessary.

The Contractor is responsible for the overall quality of contract performance and for the management of its own workforce. The COR may clarify Contractor responsibilities within the requirements of the PWS. All work to be performed under this contract is subject to Government surveillance.

CLAUSE INCORPORATED BY REFERENCE

NARS.E002 INSPECTION OF SERVICES (AUG 1996)

(END OF SECTION E)

PART I, SECTION F: DELIVERIES OR PERFORMANCE

F-1. PERIOD OF PERFORMANCE. Date of contract award with a base period of one (1) year, and four (4) one-year option periods.

CLAUSE INCORPORATED BY REFERENCE

NARS.F011 NAFI DELAY OF WORK (APR 1984)

(END OF SECTION F)

PART I, SECTION G: CONTRACT ADMINISTRATION DATA

NARS.G001 INVOICING (OCT 2024)

NAF Clause NARS.I111 "Invoices." An invoice is a written request for payment under the contract for supplies/equipment delivered or for services rendered. In order to be proper, an invoice must include (and in order to support the payment of interest penalties) the following:

(a) Invoice Date;
(b) Name of Contractor;
(c) Contract number (include order number, if any), contract description of supplies or services, quantity, contract unit of measure, unit price, and extended total;
(d) Shipment number and date of shipment;
(e) Name and address to which payment is to be sent (name must be the same as that in the contract or on a proper notice of assignment);
(f) Name (where practicable), title, telephone number and mailing address of person to be notified in the event of a defective invoice; and
(g) Any other information or documentation required by other provisions of the contract (such as evidence of shipment).

Invoices shall be prepared and submitted to the point of contact identified in the following section titled 'Appointment of Contracting Officer's Representatives'. Invoices shall be submitted by the Contractor on a monthly basis for the monthly service and will be paid in arrears. The NAFI will not make a payment for deliverables that have not been inspected and accepted by the Contracting Officer's Representative.

(End of clause)

NARS.G002 ACCOUNTING CLASSIFICATION (OCT 2024)

ACCOUNTING AND APPROPRIATION DATA: NONAPPROPRIATED FUNDS

Company Code: 6515
Cost Center: 13118
GL Account: 783089

No appropriated funds of the United States will be obligated, due or payable to a Contractor as a result of this solicitation and, if awarded, any resulting contract.

(End of clause)

NARS.G003 FINAL PAYMENT (OCT 2024)

Invoices for final payment must be identified and submitted at the end of the contract and no further charges are to be incurred along with a "release of claims" memo. The closeout invoice, or a written notification that final invoicing has been completed, must be submitted within 60 working days of contract completion. A copy of a Final Acceptance Completion Report must be attached to the final invoice. If the Contractor requires an extension to the contract, a request with supporting rationale must be received by the COR and the Contracting Officer a minimum of 60 days prior to the end of the contract.

(End of clause)

NARS.G004 APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (OCT 2024)

a. The Contracting Officer's Representative (COR) will be identified by separate letter at contract award.

b. The COR will act as the Contracting Officer's representative for technical matters, providing technical direction and discussion as necessary with respect to the specification or performance work statement, and monitoring the progress and quality of Contractor performance. The COR is not a Contracting Officer and does not have authority to take any action, either directly or indirectly, that would change the pricing, quantity, quality, place of performance, delivery schedule, or any other terms and conditions of the contract, or to direct the accomplishment of effort which goes beyond the scope of the performance work statement in the contract.

c. It is emphasized that only a Contracting Officer has the authority to modify the terms of the contract, therefore, in no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the Contractor and anyone other than the Contracting Officer be effective or binding on the Government. If, in the opinion of the Contractor, an effort outside the existing scope of the contract is requested, the Contractor shall promptly notify the Contracting Officer in writing. No action shall be taken by the Contractor under such direction unless the Contracting Officer has issued a contractual change or otherwise resolved the issue.

(End of clause)

(END OF SECTION G)

PART I, SECTION H: SPECIAL CONTRACT REQUIREMENTS

(END OF SECTION H)

PART II –SECTION I CONTRACT CLAUSES

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NARS.I010 EXAMINATION OF RECORDS (NAFI 1006 MAR 2014)
a. The Contractor agrees that the Contracting Officer or a duly authorized representative(s) will have the right to examine and audit the books and records of the Contractor directly pertaining to the contract during the period of the contract and until expiration of three years after the final payment under the contract.

b. The Contractor must include this clause in all subcontracts.

(End of Clause)

NARS.I012 INSURANCE (NAFI 1008 OCT 2013)
a. The Contractor will, at its own expense, provide and maintain during the entire performance period of this contract at least the insurance coverage as stated in this contract. In no event will the coverage be less than the minimum requirements established by applicable state and local regulations and laws for the risk associated

with the services to be provided by the contract. The Contractor will be fully responsible to the NAFI for errors and omissions of its associates' and subcontractors' under this contract.

b. The Contractor will furnish to the Contracting Officer a current certificate of insurance prior to the commencement of performance under the contract. The "INSURED" block of the Certificate of Insurance must list both the Contractor's name / (or Contractor's d.b.a. name) and the contract number. The Certificates of Insurance will evidence that all lines of insurance coverage required by the contract are in effect, and that not less than thirty (30) days prior written notice will be provided to the Contracting Officer in the event of modification, cancellation, or non-renewal of any portion of the insurance coverage(s). All certificates of insurance must list the NAFI as the certificate holder, name the NAFI and the United States as additional insureds, and carry an endorsement waiving the Contractor's rights to subrogation against the NAFI and the United States.

(End of Clause)

NARS.I013 HOLD AND SAVE HARMLESS (NAFI 1007 APR 2014)

a. The Contractor agrees to indemnify and hold harmless the NAFI and any other agency or instrumentality of the United States, and their officers, agents, and employees, from any loss, expense, damage, injury, claim, suit or judgment (including administrative actions taken against the NAFI by other federal, state or local agencies) arising from the contractor's (employee's, agent's or subcontractor's) acts or omissions or the items/services provided pursuant to the contract (including any patent, copyright, or trademark infringement claimed by a third party in connection with the items/services provided by the contractor).

b. Nothing contained herein, however, will relieve or be construed as relieving the NAFI or any other agency or instrumentality of the United States from any liability resulting from its negligence.

(End of Clause)

NARS.I014 ADVERTISEMENTS (NAFI 1005 MAY 2013)

a. The Contractor must not represent in any manner, expressly or by implication, that items or services purchased or sold under this contract are approved or endorsed by any element of the U.S. Government, including the NAFI.

b. All Contractor advertisements that refer to the NAFI or a NAFI activity will contain a statement that the advertisement was neither paid for nor sponsored, in whole or in part, by the U.S. Government or the NAFI.

(End of Clause)

NARS.I037 Equal Opportunity for Veterans (JUN 2020)

a. Definitions. As used in this clause: 'Active duty wartime or campaign badge veteran,' 'Armed Forces service medal veteran,' 'disabled veteran,' 'protected veteran,' 'qualified disabled veteran,' and 'recently separated veteran'.

b. Equal opportunity clause. The Contractor must abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

c. Subcontracts. The Contractor must insert the terms of this clause in subcontracts valued at or above the threshold specified in the contract on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor must act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as will be appropriate to identify properly the parties and their undertakings.

(End of clause)

NARS.I050 TAXES (NAFI 1018.1 NOV 2014)

a. Except as may be otherwise provided in this contract, the contract price includes all taxes, duties, or other public charges in effect and applicable to this contract on the contract date, except any tax, duty or other public charge which by law, regulation or governmental agreement is not applicable to expenditures made by the NAFI or on its behalf: or any tax, duty, or other public charge from which the Contractor, or any subcontractor hereunder, is exempt by law, regulation or otherwise. If any such tax, duty, or other public charge has been included in the contract price, through error or otherwise, the contract price will be correspondingly reduced.

b. If for any reason, after the contract date of execution, the Contractor or subcontractor is relieved in whole or in part from the payment or the burden of any tax, duty or other public charge included in the contract price, the contract price will be correspondingly reduced; or if the Contractor or a subcontractor is required to pay in whole or in part any tax, duty, or other public charge which was not included in the contract price and which was not applicable at the contract date of execution the contract price will be correspondingly increased.

c. No adjustment of less than $250 will be made in the contract price pursuant to this clause unless otherwise waived at the unilateral discretion of the Contracting Officer.

d. With respect to foreign taxes, NAFI's located in foreign countries will neither pay to nor collect for any foreign country or political subdivision any tax unless the United States has consented to levy collection by treaty, convention, or executive agreement.

(End of Clause)

NARS.I059 DISPUTES (OCT 2024)

a. The contract is not subject to the Contract Disputes Act of 1978 (41 U.S.C. §§ 7101-7109). All disputes arising under or relating to this contract shall be resolved under this clause.

b. ‘Claims,’ as used in this clause, means the inability of a contractor and the Contracting Officer to reach a mutual agreement related to contractual issues in controversy resulting in the filing of a written demand or assertion seeking payment of money, adjustment or interpretation of contract, or other relief, and issuance of a Contracting Officer’s final decision. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under this clause. The submission may be converted to a claim under this clause, by complying with the submission requirements of this clause. If it is disputed either as to liability or amount or is not acted upon in a reasonable time.

(1) A claim by the Contractor shall be made in writing and submitted to the Contracting Officer for a written decision. A claim by the NAFI against the Contractor shall be subject to a written decision by the Contracting Officer.

(2) For Contractor claims exceeding $100,000, the Contractor shall submit with the claim a certification that contains the following statement: "Subject to the False Claim Act, 31 U.S.C. § 3729, I certify the claim is made in good faith; that the supporting data is accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the NAFI is liable; and that I am duly authorized to certify on behalf of the Contractor. "

c. The Contracting Officer's decision shall be final unless the contractor appeals as provided in paragraph (d) of this clause.

d. The Contracting Officer's final decision on claims may be appealed by submitting a written appeal to The NAF Final Appeal Authority with a copy to the Contracting Officer, within 30 calendar days of receipt of the Contracting Officer's final decision. Decisions of the NAF Final Appeal Authority are final and are not subject to further appeal.

e. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

(End of Clause)

NARS.I065 COMMERCIAL WARRANTY (NAFI 1017 APR 2014)

The Contractor agrees supplies or services furnished under this contract shall be covered by the most favorable commercial warranties the Contractor gives to any customer for such supplies or services. The rights and remedies provided herein are in addition to and do not limit any rights afforded to the NAFI by any other clause of this contract. Contractor shall provide printed terms and conditions of such warranty and comply with the Magnuson-Moss Warranty Act (15 U.S. CODE §2302). Warranty shall commence upon acceptance of the items and is in addition to other warranties of additional scope given by the Contractor.

(End of Clause)

NARS.I070 TERMINATION FOR CONVENIENCE (APR 2012)

a. The NAFI may terminate performance of work under this contract in whole or, from time to time, in part if the Contracting Officer determines that a termination is in the NAFI's interest. The Contracting Officer shall terminate by delivering to the Contractor a Notice of Termination specifying the extent of termination and the effective date.

b. After receipt of a Notice of Termination, and except as directed by the Contracting Officer, the Contractor shall immediately proceed with the following obligations, regardless of any delay in determining or adjusting any amounts due under this clause:

(1) Stop work as specified in the notice.

(2) Place no further subcontracts or orders (referred to as subcontracts in this clause) for materials, services, or facilities, except as necessary to complete the continued portion of the contract.

(3) Terminate all subcontracts to the extent they relate to the work terminated.

(4) Assign to the NAFI, as directed by the Contracting Officer, all right, title, and interest of the Contractor under the subcontracts terminated, in which case the NAFI shall have the right to settle or to pay any termination settlement proposal arising out of those terminations.

(5) With approval or ratification to the extent required by the Contracting Officer, settle all outstanding liabilities and termination settlement proposals arising from the termination of subcontracts; the approval or ratification will be final for purposes of this clause.
(6) As directed by the Contracting Officer, transfer title and deliver to the NAFI:
(a) The fabricated or unfabricated parts, work in process, completed work, supplies, and other material produced or acquired for the work terminated; and;
(b) The completed or partially completed plans, drawings, information, and other property that, if the contract had been completed, would be required to be furnished to the NAFI.
(7) Complete performance of the work not terminated.
(8) Take any action that may be necessary, or that the Contracting Officer may direct, for the protection and preservation of the property related to this contract that is in the possession of the Contractor and in which the NAFI has or may acquire an interest.
(9) Use its best efforts to sell, as directed or authorized by the Contracting Officer, any property of the types referred to in paragraph (b)(6) of this clause; provided, however, that the Contractor:
(a) Is not required to extend credit to any purchaser and;
(b) May acquire the property under the conditions prescribed by, and at prices approved by, the Contracting Officer. The proceeds of any transfer or disposition will be applied to reduce any payments to be made by the NAFI under this contract, credited to the price or cost of the work, or paid in any other manner directed by the Contracting Officer.
(c) The Contractor shall submit complete termination inventory schedules no later than 120 days from the effective date of termination, unless extended in writing by the Contracting Officer upon written request of the Contractor within this 120-day period.
(d) After expiration of the plant clearance period, the Contractor may submit to the Contracting Officer a list, certified as to quantity and quality, of termination inventory not previously disposed of, excluding items authorized for disposition by the Contracting Officer. The Contractor may request the NAFI to remove those items or enter into an agreement for their storage. Within 15 days, the NAFI will accept title to those items and remove them or enter into a storage agreement. The Contracting Officer may verify the list upon removal of the items, or if stored, within 45 days from submission of the list, and shall correct the list, as necessary, before final settlement.
(e) After termination, the Contractor shall submit a final termination settlement proposal to the Contracting Officer in the form and with the certification prescribed by the Contracting Officer. The Contractor shall submit the proposal promptly, but no later than 1 year from the effective date of termination, unless extended in writing by the Contracting Officer upon written request of the Contractor within this one year period. However, if the Contracting Officer determines that the facts justify it, a termination settlement proposal may be received and acted on after 1 year or any extension. If the Contractor fails to submit the proposal within the time allowed, the Contracting Officer may determine, on the basis of information available, the amount, if any, due the Contractor because of the termination and shall pay the amount determined.
(f) Subject to paragraph (e) of this clause, the Contractor and the Contracting Officer may agree upon the whole or any part of the amount to be paid or remaining to be paid because of the termination. The amount may include a reasonable allowance for profit on work done. However, the agreed amount, whether under this paragraph (f) or paragraph (g) of this clause, exclusive of costs shown in paragraph (g)(3) of this clause, may not exceed the total contract price as reduced by:
1. The amount of payments previously made and;

2. The contract price of work not terminated. The contract shall be modified, and the Contractor paid the agreed amount. Paragraph (g) of this clause shall not limit, restrict, or affect the amount that may be agreed upon to be paid under this paragraph.

(g) If the Contractor and the Contracting Officer fail to agree on the whole amount to be paid because of the termination of work, the Contracting Officer shall pay the Contractor the amounts determined by the Contracting Officer as follows, but without duplication of any amounts agreed on under paragraph (f) of this clause:

(h) The contract price for completed supplies or services accepted by the government (or sold or acquired under paragraph (b)(9) of this clause) not previously paid for, adjusted for any saving of freight and other charges.

c. The total of:

(1) The costs incurred in the performance of the work terminated, including initial costs and preparatory expense allocable thereto, but excluding any costs attributable to supplies or services paid or to be paid under paragraph (g)(1) of this clause;

(2) The cost of settling and paying termination settlement proposals under terminated subcontracts that are properly chargeable to the terminated portion of the contract if not included in subdivision (g)(2)(a) of this clause; and;

(3) A sum, as profit on subdivision (g)(2)(a) of this clause, determined by the Contracting Officer, in effect on the date of this contract, to be fair and reasonable; however, if it appears that the Contractor would have sustained a loss on the entire contract had it been completed, the Contracting Officer shall allow no profit under this subdivision (g)(2)(c) and shall reduce the settlement to reflect the indicated rate of loss.

(4) The reasonable costs of settlement of the work terminated, including:

(a) Accounting, legal, clerical, and other expenses reasonably necessary for the preparation of termination settlement proposals and supporting data;

(b) The termination and settlement of subcontracts (excluding the amounts of such settlements); and;

(c) Storage, transportation, and other costs incurred, reasonably necessary for the preservation, protection, or disposition of the termination inventory.

(5) Except for normal spoilage, and except to the extent that the NAFI expressly assumed the risk of loss, the Contracting Officer shall exclude from the amounts payable to the Contractor under paragraph (g) of this clause, the fair value as determined by the Contracting Officer, for the loss of the NAFI property.

(6) The cost principles and procedures, in effect on the date of this contract, shall govern all costs claimed, agreed to, or determined under this clause.

(7) Except as otherwise provided in this contract, any dispute or claim concerning this contract, which is not disposed of by agreement, shall be decided by the Contracting Officer, who shall state their decision in writing, and mail or otherwise furnish a copy of it to the Contractor. Within 90 days from date of receipt of such copy, the Contractor may appeal by mailing or otherwise furnishing to the Contracting Officer a written appeal addressed to the Immediate Superior In Command (ISIC) of the Command one level above the Contracting Officer's Command. The decision of this authority shall be final and conclusive. If no such appeal is filed, the decision of the Contracting Officer shall be final and conclusive. The Contractor shall be afforded an opportunity to be heard and to offer evidence in support of any appeal under this clause. Pending final decision on such a dispute, the Contractor shall proceed diligently with the performance of the contract and according to the decision of the Contracting Officer, unless directed to do otherwise by the Contracting Officer.

(8) In arriving at the amount due the Contractor under this clause, there shall be deducted:
(a) All unliquidated advance or other payments to the Contractor under the terminated portion of this contract;
(b) Any claim which the NAFI has against the Contractor under this contract; and;
(c) The agreed price for, or the proceeds of sale of, materials, supplies, or other things acquired by the Contractor or sold under the provisions of this clause and not recovered by or credited to the NAFI.

(9) If the termination is partial, the Contractor may file a proposal with the Contracting Officer for an equitable adjustment of the price(s) of the continued portion of the contract. The Contracting Officer shall make any equitable adjustment agreed upon. Any proposal by the Contractor for an equitable adjustment under this clause shall be requested within 90 days from the effective date of termination unless extended in writing by the Contracting Officer.

(10) The NAFI may, under the terms and conditions it prescribes, make partial payments and payments against costs incurred by the Contractor for the terminated portion of the contract, if the Contracting Officer believes the total of these payments will not exceed the amount to which the Contractor will be entitled.

(11) If the total payments exceed the amount finally determined to be due, the Contractor shall repay the excess to the NAFI upon demand, together with interest computed at the rate established by the Secretary of the Treasury under 50 U.S.C. App. § 1215(b)(2). Interest shall be computed for the period from the date the excess payment is received by the Contractor to the date the excess is repaid. Interest shall not be charged on any excess payment due to a reduction in the Contractor's termination settlement proposal because of retention or other disposition of termination inventory until 10 days after the date of the retention or disposition, or a later date determined by the Contracting Officer because of the circumstances.

(12) Unless otherwise provided in this contract or by statute, the Contractor shall maintain all records and documents relating to the terminated portion of this contract for 3 years after final settlement. This includes all books and other evidence bearing on the Contractor's costs and expenses under this contract. The Contractor shall make these records and documents available to the NAFI, at the Contractor's office, at all reasonable times, without any direct charge. If approved by the Contracting Officer, photographs, microphotographs, or other authentic reproductions may be maintained instead of original records and documents.

(End of clause)

NARS.I071 NO-COST TERMINATION (OCT 2024)

a. The Contracting Officer, by written notice, may initiate a no-cost termination settlement when it is in the NAFI's interest.

b. A no-cost termination may be negotiated instead of issuing a termination notice when:
(1) A termination for default is not appropriate;
(2) A no-cost termination is in the NAFI's best interests;
(3) There are no outstanding payments, debts due the NAFI, paid items not yet delivered, unreturned NAFI property, or other contractor obligations;

c. A full and final settlement and release document shall be signed by the contractor, barring any future invoices, demands for payment, requests for equitable adjustment, or claims upon or arising under the contract.

(End of clause)

NARS.I076 ASSIGNMENT (NAFI 1010.2 NOV 2013)

a. No claims for monies due or to become due shall be assigned by the Contractor unless:

(1) Approved in writing by the Contracting Officer;
(2) Made in accordance with the laws and regulations of the United States of America; and;
(3) Permitted by the laws and regulations of the Contractor's country.

b. Any assignment under this contract shall cover all amounts payable under this contract and not already paid, and shall not be made to more than one party, except that any such assignment may be made to one party as agent or trustee for two or more parties participating in such financing. On each invoice or voucher submitted for payment under this contract to which any assignment applies and for which direct payment thereof is to be made to as assignee, the Contractor shall identify the assignee by name and complete address and shall acknowledge the validity of the assignment and the right of the named assignee to receive payment in the amount invoiced or vouchered.

(End of Clause)

NARS.I077 NONWAIVER OF DEFAULTS (NAFI 1021 JUN 2014)

Any failure by the NAFI at any time to enforce or require strict performance of any terms or conditions shall not constitute waiver thereof, and shall not affect or impair such terms or conditions in any way or the NAFI's right at any time to avail itself of such remedies as it may have for any breach or breaches of such terms or conditions.

(End of Clause)

NARS.I095 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

a. Definitions. As used in this clause—

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People’s Republic of China.

Covered telecommunications equipment or services means–

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director

of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means–

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

b. Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

c. Exceptions. This clause does not prohibit contractors from providing—

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

d. Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause.

(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

e. Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

NARS.I096 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)

a. Definitions. As used in this clause—

Kaspersky Lab covered article means any hardware, software, or service that–

(1) Is developed or provided by a Kaspersky Lab covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means–

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

b. Prohibition. Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from—

(1) Providing any Kaspersky Lab covered article that the Government will use on or after October 1, 2018; and

(2) Using any Kaspersky Lab covered article on or after October 1, 2018, in the development of data or deliverables first produced in the performance of the contract.

c. Reporting requirement.

(1) In the event the Contractor identifies a Kaspersky Lab covered article provided to the Government during contract performance, or the Contractor is notified of such by a subcontractor at any tier or any other source, the Contractor shall report, in writing, to the Contracting Officer or, in the case of the Department of Defense, to the website at https://dibnet.dod.mil. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at https://dibnet.dod.mil.

(2) The Contractor shall report the following information pursuant to paragraph (c)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

d. Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

NARS.I097 Protection of Personally Identifiable Information (PII) (OCT 2024)

a. The online program offered must adhere to Department of Defense (DoD) mandates and best practices for securing and safeguarding Personally Identifiable Information (PII). PII policies are outlined in OMB-M-06-19 and DOD instruction 8500.01 and are available from:

(1) https://georgewbush-whitehouse. archives.gov/omb/memoranda/fy2006/m06-19.pdf (OMB- M-06-19);

(2) https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/850001_2014.

pdf?ver=2019-10-07-112048-860

b. DOD instruction 8500.01.

(1) These mandates and best practices are included in the Secretary of the Navy (SECNAV) Instruction 5211.5F and CNIC Instruction 5211.1A. SECNAV Instruction 5211.5F is available from https://www.doncio.navy.mil/ContentView.aspx, and CNIC Instruction 5211.1 is available upon request from the KO. PII training Identifying and Safeguarding Personally Identifiable Information (PII) must be completed at the following website https://public.cyber.mil/dcs/.

(2) The Online system is to include servers that must comply with DoDI 8500.01.

(3) With these responsibilities Contractors should ensure that their employees:

c. At all times, Protect DON Information from inappropriate access, use, and disclosure and implement safeguards. Obtain DON management's written approval prior to taking any DON sensitive information away from the office. The DON manager's approval must identify the business necessity for removing such information from the DON facility. PII must be accessed on government furnished equipment (GFE) and safeguards must in place to protect the PII.

(End Clause)

NARS.I098 NAF COMBATING TRAFFICKING IN PERSONS (OCT 2024)

a. Definitions. As used in this clause-

“Agent” means any individual, including a director, an officer, an employee, or an independent contractor, authorized to act on behalf of the organization.

“Coercion” means-

(1) Threats of serious harm to or physical restraint against any person;

(2) Any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any person; or

(3) The abuse or threatened abuse of the legal process.

“Commercial sex act” means any sex act on account of which anything of value is given to or received by any person.

"Debt bondage" means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.

"Employee" means an employee of the Contractor directly engaged in the performance of work under the contract who has other than a minimal impact or involvement in contract performance.

"Forced Labor" means knowingly providing or obtaining the labor or services of a person-

(1) By threats of serious harm to, or physical restraint against, that person or another person;

(2) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or

(3) By means of the abuse or threatened abuse of law or the legal process.

"Involuntary servitude" includes a condition of servitude induced by means of-

(1) Any scheme, plan, or pattern intended to cause a person to believe that, if the person did not enter into or continue in such conditions, that person or another person would suffer serious harm or physical restraint; or

(2) The abuse or threatened abuse of the legal process.

"Recruitment fees" means fees of any type, including charges, costs, assessments, or other financial obligations, that are associated with the recruiting process, regardless of the time, manner, or location of imposition or collection of the fee.

(1) Recruitment fees include, but are not limited to, the following fees (when they are associated with the recruiting process) for-

(i) Soliciting, identifying, considering, interviewing, referring, retaining, transferring, selecting, training, providing orientation to, skills testing, recommending, or placing employees or potential employees;

(ii) Advertising

(iii) Obtaining permanent or temporary labor certification, including any associated fees;

(iv) Processing applications and petitions;

(v) Acquiring visas, including any associated fees;

(vi) Acquiring photographs and identity or immigration documents, such as passports, including any associated fees;

(vii) Accessing the job opportunity, including required medical examinations and immunizations; background, reference, and security clearance checks and examinations; and additional certifications;

(viii) An employer's recruiters, agents or attorneys, or other notary or legal fees;

(ix) Language interpretation or translation, arranging for or accompanying on travel, or providing other advice to employees or potential employees;

(x) NAFI-mandated fees, such as border crossing fees, levies, or worker welfare funds;

(xi) Transportation and subsistence costs-

(A) While in transit, including, but not limited to, airfare or costs of other modes of transportation, terminal fees, and travel taxes associated with travel from the country of origin to the country of performance and the return journey upon the end of employment; and

(B) From the airport or disembarkation point to the worksite;

(xii) Security deposits, bonds, and insurance; and

(xiii) Equipment charges.

(2) A recruitment fee, as described in the introductory text of this definition, is a recruitment fee, regardless of whether the payment is-

(i) Paid in property or money;

(ii) Deducted from wages;

(iii) Paid back in wage or benefit concessions;

(iv) Paid back as a kickback, bribe, in-kind payment, free labor, tip, or tribute; or

(v) Collected by an employer or a third party, whether licensed or unlicensed, including, but not limited to-

(A) Agents;

(B) Labor brokers;

(C) Recruiters;

(D) Staffing firms (including private employment and placement firms);

(E) Subsidiaries/affiliates of the employer;

(F) Any agent or employee of such entities; and

(G) Subcontractors at all tiers.

"Severe forms of trafficking in persons" means-

(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

"Sex trafficking" means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.

"United States" means the 50 States, the District of Columbia, and outlying areas.

b. The NAFI has adopted a policy prohibiting trafficking in persons including the trafficking-related activities of this clause. Contractors, contractor employees, and their agents shall not-

(1) Engage in trafficking in persons during the period of performance of the contract;

(2) Procure commercial sex acts during the period of performance of the contract;

(3) Use forced labor in the performance of the contract;

(4) Destroy, conceal, confiscate, or otherwise deny access by an employee to the employee's identity or immigration documents, such as passports or drivers' licenses, regardless of issuing authority;

(5)

(i) Use misleading or fraudulent practices during the recruitment of employees or offering of employment, such as failing to disclose, in a format and language understood by the employee

or potential employee, basic information or making material misrepresentations during the recruitment of employees regarding the key terms and conditions of employment, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if employer or agent provided or arranged), any significant costs to be charged to the employee or potential employee, and, if applicable, the hazardous nature of the work;

(ii) Use recruiters that do not comply with local labor laws of the country in which the recruiting takes place;

(6) Charge employees or potential employees recruitment fees;

(7)

(i) Fail to provide return transportation or pay for the cost of return transportation upon the end of employment-

(A) For an employee who is not a national of the country in which the work is taking place and who was brought into that country for the purpose of working on a U.S. NAFI contract or subcontract (for portions of contracts performed outside the United States); or

(B) For an employee who is not a United States national and who was brought into the United States for the purpose of working on a U.S. NAFI contract or subcontract, if the payment of such costs is required under existing temporary worker programs or pursuant to a written agreement with the employee (for portions of contracts performed inside the United States); except that-

(ii) The requirements of paragraphs (b)(7)(i) of this clause shall not apply to an employee who is-

(A) Legally permitted to remain in the country of employment and who chooses to do so; or

(B) Exempted by an authorized official of the contracting NAFI from the requirement to provide return transportation or pay for the cost of return transportation;

(iii) The requirements of paragraph (b)(7)(i) of this clause are modified for a victim of trafficking in persons who is seeking victim services or legal redress in the country of employment, or for a witness in an enforcement action related to trafficking in persons. The contractor shall provide the return transportation or pay the cost of return transportation in a way that does not obstruct the victim services, legal redress, or witness activity. For example, the contractor shall not only offer return transportation to a witness at a time when the witness is still needed to testify. This paragraph does not apply when the exemptions at paragraph (b)(7)(ii) of this clause apply.

(8) Provide or arrange housing that fails to meet the host country housing and safety standards; or

(9) If required by law or contract, fail to provide an employment contract, recruitment agreement, or other required work document in writing. Such written work document shall be in a language the employee understands. If the employee must relocate to perform the work, the work document shall be provided to the employee at least five days prior to the employee relocating. The employee's work document shall include, but is not limited to, details about work description, wages, prohibition on charging recruitment fees, work location(s), living accommodations and associated costs, time off, roundtrip transportation arrangements, grievance process, and the content of applicable laws and regulations that prohibit trafficking in persons.

c. Contractor requirements. The Contractor shall-

(1) Notify its employees and agents of-

(i) The NAFI's policy prohibiting trafficking in persons, described in paragraph (b) of this clause; and

(ii) The actions that will be taken against employees or agents for violations of this policy. Such actions for employees may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment; and

(2) Post a copy of that notification, translated into the language(s) of the workers, in an accessible central location and visible to all employees, at all production facilities that manufacture goods and merchandise.

(3) Take appropriate action, up to and including termination, against employees, agents, or subcontractors that violate the policy in paragraph (b) of this clause.

d. Notification and full cooperation.

(1) The Contractor shall inform the Contracting Officer [fill-in contact info] and the NAFI or parent organization Inspector General [fill-in contact info] immediately of-

(i) Any credible information it receives from any source (including host country law enforcement) that alleges a Contractor employee, subcontractor, subcontractor employee, or their agent has engaged in conduct that violates the policy in paragraph (b) of this clause (see also 18 U.S.C. 1351, Fraud in Foreign Labor Contracting, if that clause is included in the solicitation or contract, which requires disclosure to the NAFI or parent organization Office of the Inspector General when the Contractor has credible evidence of fraud); and

(ii) Any actions taken against a Contractor employee, subcontractor, subcontractor employee, or their agent pursuant to this clause.

(2) If the allegation may be associated with more than one contract, the Contractor shall inform all possibly-affected contracting officers.

(3) The Contractor shall, at a minimum-

(i) Disclose to the NAFI or parent organization Inspector General [fill-in contact info] information sufficient to identify the nature and extent of an offense and the individuals responsible for the conduct;

(ii) Provide timely and complete responses to NAFI auditors' and investigators' requests for documents;

(iii) Cooperate fully in providing reasonable access to its facilities and staff (both inside and outside the U.S.) to allow contracting NAFI and other responsible Federal agencies to conduct audits, investigations, or other actions to ascertain compliance with the Trafficking Victims Protection Act of 2000 (22 U.S.C. chapter 78), E.O. 13627, or any other applicable law or regulation establishing restrictions on trafficking in persons, the procurement of commercial sex acts, or the use of forced labor; and

(iv) Protect all employees suspected of being victims of or witnesses to prohibited activities, prior to returning to the country from which the employee was recruited, and shall not prevent or hinder the ability of these employees from cooperating fully with NAFI authorities.

(4) The requirement for full cooperation does not foreclose any Contractor rights arising in law or the terms of the contract. It does not-

(i) Require the Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine;

(ii) Require any officer, director, owner, employee, or agent of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; or

(iii) Restrict the Contractor from-

(A) Conducting an internal investigation; or

(B) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

e. Remedies. In addition to other remedies available to the NAFI, the Contractor's failure to comply with the requirements of paragraphs (c), (d), or (i) of this clause may result in-

(1) Requiring the Contractor to remove a Contractor employee or employees from the performance of the contract;
(2) Requiring the Contractor to terminate a subcontract;
(3) Suspension of contract payments until the Contractor has taken appropriate remedial action;
(4) Loss of award fee, consistent with the award fee plan, for the performance period in which the NAFI determined Contractor non-compliance;
(5) Declining to exercise available options under the contract;
(6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or
(7) Suspension or debarment.

f. Mitigating and aggravating factors. When determining remedies, the Contracting Officer may consider the following:

(1) Mitigating factors. The Contractor had a Trafficking in Persons compliance plan (if required) or an awareness program (if required) at the time of the violation, was in compliance with the plan, and has taken appropriate remedial actions for the violation, that may include reparation to victims for such violations.
(2) Aggravating factors. The Contractor failed to abate an alleged violation or enforce the requirements of a compliance plan, when directed by the Contracting Officer to do so.
(3) Posting. The Contractor shall post the relevant requirements for Trafficking in Persons employee notification, no later than the initiation of contract performance, at the workplace (unless the work is to be performed in the field or not in a fixed location) and on the Contractor's Web site (if one is maintained). If posting at the workplace or on the Web site is impracticable, the Contractor shall provide the relevant contents of compliance to each worker in writing and to the Contracting Officer upon request.

g. Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (g), in all subcontracts and in all contracts with agents.

(End of clause)

NARS.I101 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

a. Definitions. As used in this clause—

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—
(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

b. Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, "No TikTok on Government Devices" Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

c. Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

NARS.I103 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION (JUN 2023)

a. Definitions. As used in this clause—

"Forced labor" means any work or service that is exacted from any person under the menace of any penalty for its nonperformance and that the worker does not offer to perform (10 U.S.C. 2496).

"XUAR" means the Xinjiang Uyghur Autonomous Region of the People's Republic of China (10 U.S.C. 2496).

b. Prohibition. In accordance with 10 U.S.C. 4661, none of the funds appropriated or otherwise made available for DoD may be used to knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR. The Contractor shall make a good faith effort to determine that forced labor from XUAR will not be used in the performance of this contract (section 855, Pub. L. 117-263).

c. Subcontracts. The Contractor shall insert this clause, including this paragraph (c), without alteration other than to identify the appropriate parties, in subcontracts including subcontracts for commercial products, commercial services, and commercially available off-the-shelf items.

(End of clause)

NARS.I112 Travel Expenses (OCT 2024)

The Contractor will be reimbursed for authorized travel made in association with the performance of this contract to include per diem, lodging, airfare, rental car and incidental expenses. Travel cost will be reimbursed per the following guidelines:

a. The Contractor shall submit itemized receipts for commercial transportation, lodging, rental car, fuel, personal vehicle mileage, parking, and incidental expenses on a monthly basis with the monthly invoice. Food/meal receipts are not required.

b. A fee for profit and G&A on travel cost and per diem is NOT authorized.

c. Commercial transportation is ONLY authorized at the restricted fare rate not to exceed regular coach rate. Baggage fees are reimbursable up to two (2) bags per authorized traveler. Fees for excess baggage weight are non-reimbursable.

d. Per diem and incidental expense rate shall be reimbursed as follows:

(1) In accordance with DoD published rates for geographic area of travel, which can be found at http://www.defensetravel.dod.mil/site/perdiemCalc.cfm. Per diem consists of local meals and incidentals.

(2) At the rate of 75% of published rate for geographic area of travel for the first and last day of travel, and 100% of published rate for remaining travel days.

e. Every attempt should be made to utilize Navy Gateway Inns and Suites for lodging if practical and available. Lodging cost will be reimbursed at the actual expense rate not to exceed the current maximum daily rate listed on the above defense travel website, to include fees and taxes.

Contact the Contracting Officer or Contracting Officer Representative for reimbursement clarification if required prior to travel.

(End of clause)

NARS.I113 Itemized Travel Invoices (OCT 2024)

All reimbursable travel shall have prior approval by the COR/Alternate COR. The Contractor shall ensure that itemized travel invoices for Government sponsored travel are submitted accurately and timely to the COR/ACOR for certification. Itemized travel invoices shall be submitted to the COR within 30 calendar days of returning from travel. Each invoice shall contain the following information.

a. Mileage cost associated with government directed travel.

b. Per diem cost (lodging, meals, and transportation)

c. Airfare

(End of clause)

CLAUSES INCORPORATED BY REFERENCE

The following clauses set forth are hereby incorporated into this order or contract by reference with the same force and effect as if they were given in full text. As used in the following clause, the term "Government" is deleted and the abbreviation "NAFI" is substituted in lieu thereof. The date of each clause shall be the current date set forth at the time of issuance of an order or contract award. Upon request, the Contracting Officer will provide the full text.

CLAUSE NO.	CLAUSE TITLE
NARS.I001	Definitions
NARS.I002	Legal Status Non-Appropriated Fund Instrumentality
NARS.I015	Order of Precedence
NARS.I026	Contract Work Hours and Safety Standards Act- Overtime. Compensation – General (Contracts over $150,000)
NARS.I027	Walsh-Healey Public Contracts Act (Supply Contracts in Excess of $15,000) (not with foreign Contractors)
NARS.I030	Equal Opportunity for Workers with Disabilities (Supplies And Services Contracts $15,000)
NARS.I031	Service Contract Act of 1965, as Amended (Contracts over $2,500)
NARS.I037	Equal Opportunity for Veterans (Supplies and Service over $150,000)
NARS.I041	Privacy Act Notification (JAN 2008)
NARS.I042	Privacy Act (PR 1984)
NARS.I045	Restrictions on Certain Foreign Purchases
NARS.I052	Payments
NARS.I053	Discounts for Prompt Payments

NARS.I055	Extras
NARS.I057	Mandatory Information for Electronic Funds Transfer (EFT)
NARS.I061	Bankruptcy
NARS.I075	Convict Labor (Contracts over $2,500)
NARS.I081	Employment Reports Veterans, (Supplies and Services Contracts over $10,000)
NARS.I086	Employment Eligibility Verification
NARS.I090	Disclosure of Information
NARS.I093	Cloud Computing Services
NARS.I100	Procurement Integrity
NARS.I104	Child Labor-Cooperation with Authorities and Remedies
NARS.I114	Department of Labor Wage Determination (2014)
NARS.I116	Covenant Against Contingent Fees (Contracts over $150,000)
NARS.I117	Contractor Inspection Requirements

SUPPLEMENTAL CLAUSES

NARS.I023 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 60 days prior to end of the current active period of performance. (End of clause)

NARS.I024 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)
a. The NAFI may extend the term of this contract by written notice to the Contractor within 30 days of time within which the Contracting Officer may exercise the option; provided that the NAFI gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the NAFI to an extension.

b. If the NAFI exercises this option, the extended contract will be considered to include this option clause.

c. The total duration of this contract, including the exercise of any options under this clause, will not exceed 4 years and 6 months.

(End of clause)

NARS.I041 PRIVACY ACT NOTIFICATION (JAN 2008). The Contractor will be required to design, develop, or operate a system of records on individuals, to accomplish an agency function subject to the Privacy Act of 1974, Public Law 93-579, December 31, 1974 (5 U.S.C.552a) and applicable agency regulations. Violation of the Act may involve the imposition of criminal penalties.

(End of Clause)

NARS.I042 PRIVACY ACT (APR 1984)
a. The Contractor agrees to

(1) Comply with the Privacy Act of 1974 (the Act) and the agency rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish an agency function when the contract specifically identifies

(i) The systems of records; and

(ii) The design, development, or operation work that the Contractor is to perform;

(2) Include the Privacy Act notification contained in this contract in every solicitation and resulting subcontract and in every subcontract awarded without a solicitation, when the work statement in the proposed subcontract requires the redesign, development, or operation of a system of records on individuals that is subject to the Act; and

(3) Include this clause, including this subparagraph (3), in all subcontracts awarded under this contract which requires the design, development, or operation of such a system of records.

b. In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, or operation of a system of records on individuals to

accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a system of records on individuals to accomplish an agency function. For purposes of the Act, when the contract is for the operation of a system of records on individuals to accomplish an agency function, the Contractor is considered to be an employee of the agency.

(2) "Operation of a system of records," as used in this clause, means performance of any of the activities associated with maintaining the system of records, including the collection, use, and dissemination of records.

(3) "Record," as used in this clause, means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and that contains the person's name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a fingerprint or voiceprint or a photograph.

(4) "System of records on individuals," as used in this clause, means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.

(End of clause)

NARS.I074 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):
https://www.navymwr.org/resources/naf_acquisitions/naf_contract_clauses_main

End of clause)

NARS.I114 DEPARTMENT OF LABOR WAGE DETERMINATION (OCT 2024):
A Department of Labor Wage Determination applies to the service requirement within this solicitation and is available at https://sam.gov/search/?index=sca&page=1&pageSize=25&sort=-modifiedDate&sfm%5Bstatus%5D%5Bis_active%5D=true ; select the appropriate state and county where services will be conducted in support of this requirement and follow the instructions. The appropriate wage determination will be displayed with the applicable wage rates that are required to be paid to employees working on the services provided under the contract.

(End of Clause)

NARS.I115 MINIMUM WAGES UNDER EXECUTIVE ORDER 13658 (APR 2016)

a. Definitions. As used in this clause—
"United States" means the 50 states and the District of Columbia.
"Worker"—

(1) Means any person engaged in performing work on, or in connection with, a contract covered by Executive Order 13658, and—

(i) Whose wages under such contract are governed by the Fair Labor Standards Act (29 U.S.C. chapter 8), the Service Contract Labor Standards statute (41 U.S.C. chapter 67), or the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV);

(ii) Other than individuals employed in a bona fide executive, administrative, or professional capacity, as those terms are defined in 29 CFR part 541; and

(iii) Regardless of the contractual relationship alleged to exist between the individual and the employer.

(2) Includes workers performing on, or in connection with, the contract whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c).

(3) Also includes any person working on, or in connection with, the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

b. Executive Order Minimum Wage rate.

(1) The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, a minimum hourly wage rate of $10.10 per hour beginning January 1, 2015.

(5) The Contractor shall adjust the minimum wage paid, if necessary, beginning January 1, 2016, and annually thereafter, to meet the applicable annual E.O. minimum wage. The Administrator of the Department of Labor's Wage and Hour Division (the Administrator) will publish annual determinations in the Federal Register no later than 90 days before the effective date of the new E.O. minimum wage rate. The Administrator will also publish the applicable E.O. minimum wage on https://beta.SAM.gov (or any successor Web site) and a general notice on all wage determinations issued under the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, that will provide information on the E.O. minimum wage and how to obtain annual updates. The applicable published E.O. minimum wage is incorporated by reference into this contract.

(6)

(i) The Contractor may request a price adjustment only after the effective date of the new annual E.O. minimum wage determination. Prices will be adjusted only for increased labor costs (including Subcontractor labor costs) as a result of an increase in the annual E.O. minimum wage, and for associated labor costs (including those for Subcontractors). Associated labor costs shall include increases or decreases that result from changes in social security and unemployment taxes and workers' compensation insurance, but will not otherwise include any amount for general and administrative costs, overhead, or profit.

(ii) Subcontractors may be entitled to adjustments due to the new minimum wage, pursuant to paragraph (b)(2). Contractors shall consider any Subcontractor requests for such price adjustment.

(iii) The Contracting Officer will not adjust the contract price under this clause for any costs other than those identified in paragraph (b)(3)(i) of this clause, and will not provide duplicate price adjustments with any price adjustment under clauses implementing the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute.

(7) The Contractor warrants that the prices in this contract do not include allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

(8) A pay period under this clause may not be longer than semi-monthly, but may be shorter to comply with any applicable law or other requirement under this contract establishing a shorter pay period. Workers shall be paid no later than one pay period following the end of the regular pay period in which such wages were earned or accrued.

(9) The Contractor shall pay, unconditionally to each worker, all wages due free and clear without subsequent rebate or kickback. The Contractor may make deductions that reduce a worker's wages below the E.O. minimum wage rate only if done in accordance with 29 CFR 10.23, Deductions.

(10) The Contractor shall not discharge any part of its minimum wage obligation under this clause by furnishing fringe benefits or, with respect to workers whose wages are governed by the Service Contract Labor Standards statute, the cash equivalent thereof.

(11) Nothing in this clause shall excuse the Contractor from compliance with any applicable Federal or State prevailing wage law or any applicable law or municipal ordinance establishing a minimum wage higher than the E.O. minimum wage. However, wage increases under such other laws or municipal ordinances are not subject to price adjustment under this subpart.

(12) The Contractor shall pay the E.O. minimum wage rate whenever it is higher than any applicable collective bargaining agreement(s) wage rate.

(13) The Contractor shall follow the policies and procedures in 29 CFR 10.24(b) and 10.28 for treatment of workers engaged in an occupation in which they customarily and regularly receive more than $30 a month in tips.

c.

(1) This clause applies to workers as defined in paragraph (a). As provided in that definition—

(i) Workers are covered regardless of the contractual relationship alleged to exist between the Contractor or Subcontractor and the worker;

(ii) Workers with disabilities whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) are covered; and

(iii) Workers who are registered in a bona fide apprenticeship program or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship, are covered.

(2) This clause does not apply to—

(i) Fair Labor Standards Act (FLSA)-covered individuals performing in connection with contracts covered by the E.O., i.e. those individuals who perform duties necessary to the performance of the contract, but who are not directly engaged in performing the specific work called for by the contract, and who spend less than 20 percent of their hours worked in a particular workweek performing in connection with such contracts;

(ii) Individuals exempted from the minimum wage requirements of the FLSA under 29 U.S.C. 213(a) and 214(a) and (b), unless otherwise covered by the Service Contract Labor Standards statute, or the Wage Rate Requirements (Construction) statute. These individuals include but are not limited to—

(A) Learners, apprentices, or messengers whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(a).

(B) Students whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(b).

(C) Those employed in a bona fide executive, administrative, or professional capacity (29 U.S.C. 213(a)(1) and 29 CFR part 541).

d. Notice. The Contractor shall notify all workers performing work on, or in connection with, this contract of the applicable E.O. minimum wage rate under this clause. With respect to workers covered by the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, the Contractor may meet this requirement by posting, in a prominent and accessible place at the worksite, the applicable wage determination under those statutes. With respect to workers whose wages are governed by the FLSA, the Contractor shall post notice, utilizing the poster provided by the Administrator, which can be obtained at www.dol.gov/whd/govcontracts, in a prominent and accessible place at the worksite. Contractors that customarily post notices to workers electronically may post the notice electronically provided the electronic posting is displayed prominently on any Web site that is maintained by the Contractor, whether external or internal, and customarily used for notices to workers about terms and conditions of employment.

e. Payroll Records.
1. The Contractor shall make and maintain records, for three years after completion of the work, containing the following information for each worker:
    a. Name, address, and social security number;
    b. The worker's occupation(s) or classification(s);
    c. The rate or rates of wages paid;
    d. The number of daily and weekly hours worked by each worker;
    e. Any deductions made; and
    f. Total wages paid.

2. The Contractor shall make records pursuant to paragraph (e)(1) of this clause available for inspection and transcription by authorized representatives of the Administrator. The Contractor shall also make such records available upon request of the Contracting Officer.

3. The Contractor shall make a copy of the contract available, as applicable, for inspection or transcription by authorized representatives of the Administrator.
4. Failure to comply with this paragraph (e) shall be a violation of 29 CFR 10.26 and this contract. Upon direction of the Administrator or upon the Contracting Officer's own action, payment shall be withheld until such time as the noncompliance is corrected.
5. Nothing in this clause limits or otherwise modifies the Contractor's payroll and recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, or any other applicable law.

f. Access. The Contractor shall permit authorized representatives of the Administrator to conduct investigations, including interviewing workers at the worksite during normal working hours.

g. Withholding. The Contracting Officer, upon his or her own action or upon written request of the Administrator, will withhold funds or cause funds to be withheld, from the Contractor under this or any other NAFI or Government contract with the same Contractor, sufficient to pay workers the full amount of wages required by this clause.

h. Disputes. Department of Labor has set forth in 29 CFR 10.51, Disputes concerning Contractor compliance, the procedures for resolving disputes concerning a Contractor's compliance with Department of Labor regulations at 29 CFR part 10. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. These disputes include disputes between the Contractor (or any of its Subcontractors) and the contracting agency, the Department of Labor, or the workers or their representatives.

i. Anti-retaliation. The Contractor shall not discharge or in any other manner discriminate against any worker because such worker has filed any complaint or instituted or caused to be instituted any proceeding under or related to compliance with the E.O. or this clause or has testified or is about to testify in any such proceeding.

j. Subcontractor compliance. The Contractor is responsible for Subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due Subcontractor workers.

k. Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (k) in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

(End of Clause)

(END OF SECTION I)

PART III, SECTION J: LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

1. Appendix 1 PWS Technical References_05052021
2. Appendix 2 PWS iCMS User Guide 2026

3. Appendix 3.1 and 3.2 PWS Video and 508 Accessibility Checklists
4. Appendix 5 PWS Constraints_05052021
5. Appendix 6 PWS Link Vetting SOP August 2020
6. Appendix 7 PWS Chapman Alliance Ratios
7. Appendix 8 Travel Request Form
8. Appendix 9 Computer Access Tokens

(END OF SECTION J)

PART IV, SECTION K OFFEROR REPRESENTATIONS AND CERTIFICATIONS:

NARS.K018 REPRESENTATION FOR USE OF CLOUD COMPUTING (SEP 2015)

a. Definition. “Cloud computing,” as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

b. The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

c. Representation. The Offeror represents that it—

_____ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

_____ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

NARS.K019 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (OCT 2020)

a. The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled NARS.I098 "Combating Trafficking in Persons".

b. The apparent successful Offeror shall submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-

(1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and
(2) Has an estimated value that exceeds $550,000.

c. The certification shall state that-

(1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at NARS.I098, Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at NARS.I098, Combating Trafficking in Persons; and

(2) After having conducted due diligence, either-

(i) To the best of the Offeror's knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or

(ii) If abuses relating to any of the prohibited activities identified in NARS.I098(b) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

(End of provision)

NARS.K022 OFFEROR REPRESENTATIONS AND CERTIFICATIONS COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (e) through (v) of this provision.

a. Definitions. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause NARS.I095, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;
(4) PSG 89, Subsistence;
(5) PSC 9410, Crude Grades of Plant Materials;
(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
(8) PSC 9610, Ores;
(9) PSC 9620, Minerals, Natural and Synthetic; and
(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause NARS.I095, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
(3) Consist of providing goods or services to marginalized populations of Sudan;
(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
(5) Consist of providing goods or services that are used only to promote health or education; or
(6) Have been voluntarily suspended. "Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
    (i) To restrict the free flow of unbiased information in Iran; or
    (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the

responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

b.

(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.
(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at NARS.K022, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference.

[Offeror to identify the applicable paragraphs at (e) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

c. [RESERVED]

d. [RESERVED]

e. Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

f. Buy American Certificate. (Applies only if the clause at CNIC M-7043.1 NARS.I043, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.
(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the

Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.
(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see CNIC M-7043.1 NAR Part 25).
(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of CNIC M-7043.1 NAR Part 25.

g.
(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at CNIC M-7043.1 NARS.I029, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)
(i)
(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.
(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."
(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products)

or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____		

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see CNIC M-7043.1 NAR Part 25).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of CNIC M-7043.1 NAR Part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at NARS.I029 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line Item No.

_____

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at NARS.I029 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:
(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”
(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at NARS.I044, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
_____	_____

_____ _____

_____ _____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of CNIC M-7043.1 NAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

h. Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals–

(1) □ Are, □ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;
(2) □ Have, □ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;
(3) □ Are, □ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and
(4) □ Have, □ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds $10,000 for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:
(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.
(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
(ii) Examples.
(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.
(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

i. **NARS.K028 CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS** (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed End Product	Listed Countries of Origin
_____	_____
_____	_____
_____	_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.
☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

j. Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) □ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
(2) □ Outside the United States.

k. Certificates regarding exemptions from the application of the Service Contract Act (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror □ does □ does not certify that–
(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;
(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and
(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror □ does □ does not certify that-
(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;
(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));
(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and
(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies–
(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and
(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

l. Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).
(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.
(3) Taxpayer Identification Number (TIN).
☐ TIN: _____.
☐ TIN has been applied for.
☐ TIN is not required because:
☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;
☐ Offeror is an agency or instrumentality of a foreign government;
☐ Offeror is an agency or instrumentality of the Federal Government.
(4) Type of organization.
☐ Sole proprietorship;
☐ Partnership;
☐ Corporate entity (not tax-exempt);
☐ Corporate entity (tax-exempt);
☐ Government entity (Federal, State, or local);
☐ Foreign government;
☐ International organization per 26 CFR1.6049-4;
☐ Other _____.
(5) Common parent.
☐ Offeror is not owned or controlled by a common parent;
☐ Name and TIN of common parent:
Name _____.
TIN _____.

m. Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

n. Prohibition on Contracting with Inverted Domestic Corporations.
(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.
(2) Representation. The Offeror represents that–
(i) It □ is, □ is not an inverted domestic corporation; and
(ii) It □ is, □ is not a subsidiary of an inverted domestic corporation.

o. Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.
(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;
(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and
(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (NARS.K011); and
(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

p. Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it □ has or □ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.
(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.
Immediate owner legal name: _____.
(Do not use a "doing business as" name)
Is the immediate owner owned or controlled by another entity: □ Yes or □ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.
Highest-level owner legal name: _____.
(Do not use a "doing business as" name)

q. Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that–

(i) It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

r. Predecessor of Offeror. (Applies in all solicitations that include the provision at NARS.K009, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it □ is or □ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark "Unknown").
Predecessor legal name: _____.
(Do not use a "doing business as" name).

s. [Reserved]

t. Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM.

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner)

□ does, □ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

u.

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

V. **NARS.K021 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION**. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that–

(i) It □ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it □ does, □ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

NARS.K023 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at NARS.K021, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at NARS.K022, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at NARS.K021, or in paragraph (v)(2)(ii) of the provision at NARS.K022.

a. Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause NARS.I095, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

b. Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

c. Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

d. Representation. The Offeror represents that—

(1) It □ will, □ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It □ does, □ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

e. Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

NARS.K025 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION – CERTIFICATION (APR 2023)

a. Definitions. "Forced labor", "Person", and "XUAR", as used in this provision, have the meaning given in the NARS.I103 "Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region", clause of this solicitation.

b. Prohibition. DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the "Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region", clause of this solicitation.

c. Certification.

(i) The Offeror does □ does not □ certify that the Offeror has made a good faith effort to determine that forced labor from XUAR was not or will not be used in the performance of a contract resulting from this solicitation.

(ii) Offerors who do not certify having made a good faith effort will not be eligible for award.

(End of provision)

(END OF SECTION K)

PART IV, SECTION L: INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

L-1. PREPARATION OF OFFERS.

(a) Offerors are expected to carefully read all specifications and instructions. The Offeror shall submit documentation explaining their approach for satisfying the requirements of this solicitation. Proposals must be clear, coherent, and prepared in sufficient detail for effective evaluation of the

Offeror's proposal against the evaluation criteria. Failure to meet all of the Terms, Conditions and Specifications in Section C may render the Offeror's proposal as non-responsive to the solicitation and thereupon eliminated from competition for award.

(b) Each Offeror shall furnish the information required by the solicitation. The Offeror shall sign the offer and print or type its name on the Schedule and each continuation sheet on which it makes an entry. Erasures or other changes must be initialed by the person signing the offer. Offeror(s) shall provide with their proposal a letter providing the name(s) and title(s) of the person(s) with authority to obligate their company. Offers signed by an agent shall also be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(c) Offerors must state a definite time for delivery of supplies or services, unless otherwise specified in the solicitation.

(d) Offers for supplies or services, other than those specified, will not be considered unless an amendment to the solicitation is issued.

(e) Time, if stated as a number of days, will include Saturdays, Sundays, and holidays.

(f) Offerors shall fill out and return Section K provisions Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment and Covered Telecommunications Equipment or Services-Representation, Prohibition on Certain Procurements from the XinJiang Uyghur Autonomous Region – Certification.

(g) Offerors shall price all option year periods.

(h) To ensure applicable Wage Determination(s) be listed at contract award, Offerors shall fill out and provide the locations of their workers and return Supplemental I clause Department of Labor Wage Determination.

All correspondence in conjunction with this solicitation should be directed to the NAFI's Point of Contact (POC) identified below:

Contract Specialist: Kelly Cline
E-mail: kelly.l.cline7.naf@us.navy.mil

L-2. PROPOSAL GENERAL REQUIREMENTS.

(a) Offerors are hereby advised that the Navy CNIC reserves the right, to make award without discussions; therefore, Offerors should propose their best-offer initially. Offerors shall submit their proposals as follows:

(b) Responses to this offer shall be required in written proposal format. Responses to this RFP shall be submitted, by the closing date, in the content and format specified. Proposals in response to this RFP shall include three separate parts: one (1) Price proposal and two (2) non-price proposals. Of the two (2) non-price proposals required, one must be redacted of all company names, logos and references. The second non-price proposal can include company names/logos/references. The names

of any contract employees/personnel/staff members can be included in both technical proposals. It is the responsibility of the Offerors to ensure that the evaluation factors are identified and adequately addressed in their proposal submissions: The overall proposal shall consist of three (3) physically separate and detachable parts, individually entitled:
(1)

PROPOSAL VOLUME	VOLUME CONTENTS	REQUIRED # ELECTRONIC COPIES
VOLUME I	Technical Proposal (Subsections tabbed for ease of identification)	Two (2) via Email 1. Redacted 2. Non-Redacted
VOLUME II	Price Proposal	One (1) via Email

(c) The completion and submission of the above items shall constitute an offer (proposal) and shall indicate the Offeror's unconditional assent to the terms and conditions of this RFP and any attachments hereto. Alternate proposals are not authorized. Objections to any terms and conditions of the RFP shall constitute a deficiency which may make the offer unacceptable. An Offeror may correct a deficiency only through discussions.

L-2.2. Page Limitations

(a) For hardcopy proposals: Not Applicable

(b) For electronic proposals: each volume of the proposal shall be provided in the number of copies as shown above. The technical proposal shall not exceed 30 pages (excluding past performance, resumes, Project Management Professional (PMP), Quality Control Plan (QCP), and price proposal). Sub-factor sections shall be labeled for ease of identification. Offerors shall identify each volume identifying volume number, name, and copy number (i.e., Volume I, Technical Proposal, Copy 2 of 8); Request for Proposal Number; Date of Submission; and Offeror's Name.

L-2.3. Format

(a) For electronic proposals: The Offeror's proposal shall be prepared on standard 8.5 x 11inch paper in portrait orientation (charts may be landscaped). All pages of each proposal shall be appropriately numbered and identified with the solicitation number and the name of the Offeror. For ease of reference each Offeror shall use a page numbering system. Consecutive page numbering is preferred (i.e., Page 4-5 identifies Tab 4, Page 5). In addition, for document control purposes, all proposal amendments provided after the initial proposal shall be submitted as page changes with each page identified by amendment number and date as well as by page number. Each page shall have a one-inch margin at the top, the bottom, and on each side. Page numbers, notations of proprietary information, and any other identifying information that can be printed on each page are excluded from the margin requirement.

(b) Print must be spaced at 6 lines per inch. Text font must be no smaller than 10 point. Text included on figures and/or matrices may be reduced to 8 point.

(c) To aid in evaluation, proposals shall be clearly and concisely written as well as being neat, indexed (cross-indexed, as appropriate) and logically assembled. Each proposal part shall begin with an executive summary. In addition to the specific requirements for each proposed part, the Offeror shall provide other narrative or supporting materials (i.e., matrix, charts, or graphics) considered necessary for the NAFI to fully understand the proposal. Price information shall be included in the price proposal only. Man-hours referenced outside the price proposal shall be quoted in hour figures only, without indication as to the cost of these hours. Skill levels shall be treated in a similar manner.

(1) For control purposes each copy of the proposal shall be numbered.

L-3. PROPOSAL SUBMISSION REQUIREMENT AND INSTRUCTIONS.

(a) To be considered for award, the offeror's proposal must include documentation that demonstrates that the Large Language Model (LLM) or other AI model offered complies with the Unbiased AI Principles of "Truth-seeking" and "Ideological Neutrality" as defined in Executive Order 14319, Preventing Woke AI in the Federal Government.

(b) An offeror's failure to provide the information required by this provision may result in the proposal being ineligible for award.

L-3.2. Volume I: Technical Proposal - The Offeror's technical proposal shall consist of narrative and supporting data that address all technical requirements contained in the solicitation. The Offeror's technical proposal must address the following elements:

(a) Factor 1: Technical Capability - Describe in detail the approach for meeting the technical requirements to include a description of your services and systems that will be used to perform the requirements in section C.

(b) Factor 2 – Key Personnel: Describe in detail the Offeror's ability to meet Key Personnel qualifications requirements for personnel to perform the requirements of the performance work statement of section C and include resume of key personnel.

(c) Factor 3: Past Performance - The Offeror shall describe its past performance within the past 5 years directly related to the same or similar tasks and support per section C (Government or Commercial). Offeror shall request three sources provide Past Performance Questionnaires (PPQ's) directly to kelly.l.cline7.naf@us.navy.mil

The Past Performance Questionnaires are not required to be submitted with the proposal if you have received a contract award from CNIC within the past five years.

L-3.3. Volume II: Price Proposal - The price proposal shall include a price for each CLIN of this solicitation and shall include a summary of each year's cost and a total estimated cost for the contract. There are no page limits set for the price proposal.

(a) Other Direct Costs: Estimate all other direct costs for performance of contract requirements; (i.e., travel, subscriptions or periodicals, consultant fees.) Rationale for each proposed other direct cost is required.

(b) Payment Methods: Electronic funds transfer payments are available for processing invoices for this contract in accordance with the prompt payment act via the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association or via credit card procedures with Single Use Account (SUA). Single-Use Account (SUA) is an electronic payment tool that eliminates the need for a physical credit card. SUA provides a single electronic card for each payment. A 16-digit virtual account is provided for each payment and the credit limit is set for the specific payment amount. Electronic funds transfer ACH payments will be processed on a Net 30-day basis or less if a payment discount is offered, e.g. 2% 10 days. SUA payments will be processed in 10 days or less. Prospective Contractors shall include their desired payment method in their proposal.

L-4. REQUEST FOR INFORMATION/QUESTIONS.

L-4.1. Questions and/or comments relative to the solicitation should be submitted via e-mail to:

Contract Specialist – Kelly Cline
Email: kelly.l.cline7.naf@us.navy.mil

L-4.1. Technical inquiries and questions relating to proposal procedures are to be submitted via email to Contracting Officer at the email address mentioned above not later than 1 DECEMBER 2026.

Offerors are requested to review the specifications in its entirety prior to submitting a question. Oral explanations or instructions are not binding. Any information given to an Offeror which impacts the solicitation and/or offer will be given in the form of a written amendment to the solicitation. As this is a competitive negotiation acquisition, there is no public bid opening and no information will be given out prior to debriefings, pre-award or post-award.

L-5. DIRECTIONS FOR SUBMITTING PROPOSALS.

L-5.1. Electronic Offers are the preferred method. All email offers submitted must be received by the closing date and time to: kelly.l.cline7.naf@us.navy.mil

L-5.2. Signed amendments shall be submitted via e-mail as scanned pdf documents.

(a) Clarity and completeness of the proposal are of utmost importance. The proposal and any modifications shall be written in a practical, clear, and concise manner. It must use quantitative terms whenever possible and shall avoid qualitative adjectives to the maximum extent possible. Proposal volumes must be internally consistent or the proposal will be considered unrealistic and unacceptable.

(b) Unnecessarily elaborate proposals beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the Offeror's lack of cost consciousness.

(c) In order to provide all necessary information for background experience, your proposal shall cover your understanding of the proposed work and your proposed method to attain contract objectives. Data previously submitted may not be considered; therefore, such data should not be relied upon nor incorporated. Statements the Offeror understands, can or will comply with all specifications,

statements paraphrasing the specifications or parts thereof, and phrases such as "standard procedures will be employed" or well-known techniques will be used," etc., will be considered insufficient.

L-6. LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF PROPOSALS.

(a) Any proposal received at the office designated in the solicitation after the exact time specified for receipt will not be considered unless it is received before award is made and it:

(1) was sent by registered or certified mail not later than the fifth calendar day before the date specified for receipt of offers (e.g., an offer submitted in response to a solicitation requiring receipt of offers by the 20th of the month must have been mailed by the 15th);

(2) was sent by mail or, if authorized by the solicitation, or via facsimile and it is determined by the NAFI that the late receipt was due solely to mishandling by the NAFI after receipt at the Government installation;

(3) was sent by Express Mail (e.g. FedEx, UPS or postal service), not later than 5:00 P.M. at the place of mailing two working days prior to the date specified for receipt of proposals. The term "working days" excludes weekends and U.S. Federal holidays; or

(4) is the only proposal received.

(5) Email receipts date and time are automatically system generated prior to RFP due date, and contain all necessary attachments.

(b) Any modification of a proposal, except a modification resulting from the Contracting Officer's request for "final proposal revision" offer is subject to the same conditions above.

(c) A modification resulting from the Contracting Officer's request for "final proposal revision" offer received after the time and date specified in the request will not be considered unless received before award and the late receipt is due solely to mishandling by the NAFI after receipt at the Government installation.

(d) The only acceptable evidence to establish the date of mailing of a late proposal or modification sent either by U.S. Postal Service registered or certified mail is the U.S. or Canadian Postal Service postmark both on the envelope or wrapper and on the original receipt from the U.S. or Canadian Postal Service. Both postmarks must show a legible date or the proposal, or modification shall be processed as if mailed late. "Postmark" means a printed, stamped, or otherwise placed impression (exclusive of a postage meter machine impression) that is readily identifiable without further action as having been supplied and affixed by employees of the U.S. or Canadian Postal Service on the date of mailing. Therefore, Offerors should request the postal clerk place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(e) The only acceptable evidence to establish the time of receipt at the Government installation is the time/date stamp of that installation on the proposal wrapper or other documentary evidence of receipt maintained by the installation.

(f) The only acceptable evidence to establish the date of mailing of a late offer, modification, or withdrawal sent by "Express Mail Service" is the date entered by the mail service receiving clerk on the "Express Mail Service" label and/or the postmark on both the envelope or wrapper and on the original receipt from the mail service provider. "Postmark" has the same meaning as defined above, excluding postmarks of the Canadian Postal Service. Therefore, Offerors should request the postal clerk to place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(g) Notwithstanding paragraph (a) of this provision, a late modification of an otherwise successful proposal that makes its terms more favorable to the NAFI will be considered at any time it is received and may be accepted.

(h) Proposals may be withdrawn by written notice received at any time before award. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provisions entitled "Facsimile Proposals." Proposals may be withdrawn in person by an Offeror or an authorized representative, if the representative's identity is made known and the representative signs a receipt for the proposals before award.

L-7. AMENDMENTS TO SOLICITATIONS.

(a) If this solicitation is amended, then all terms and conditions which are modified remain unchanged.

(b) Offerors shall acknowledge receipt of any amendment to this solicitation by one of the following: (1) signing and returning the amendment, (2) identifying the amendment number and date in the space provided for this purpose on the form for submitting an offer, or (3) by sending letter of acknowledgement (or facsimile, if facsimile offers are authorized in the solicitation). The NAFI must receive the acknowledgement by the time specified for receipt of offers.

L-8. RESTRICTION ON DISCLOSURE AND USE OF DATA. Offerors who include in their proposal data that they do not want disclosed to the public for any purpose or used by the NAFI except for more than evaluation purposes, shall mark the title page with the following legend: "This proposal includes data that shall not be disclosed in whole or in part - for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this Offeror as a result of, or in connection with, the submission of this data, the NAFI shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the NAFI's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets _____ (insert numbers or other identification of sheets"; and mark each sheet of data it wishes to restrict with the following legend: "Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal or quotation."

L-9. FAILURE TO SUBMIT OFFER. Recipients of this solicitation not responding with an offer should not return this solicitation, unless it specifies otherwise. Instead, they should advise the issuing office by letter or email whether they want to receive future solicitations for similar requirements. If a recipient does not submit an offer and does not notify the issuing office that future solicitations are desired, the recipient's name may be removed from the applicable mailing list.

L-10. CONTRACT AWARD – NEGOTIATED PROCUREMENT.

(a) The NAFI will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the NAFI, cost or price and non-price factors specified elsewhere in this solicitation, considered.

(b) The NAFI may (1) reject any or all offers if such action is in the public interest, (2) accept other than the lowest offer, and (3) waive informalities and minor irregularities in offers received.

(c) The NAFI intends to evaluate proposals and award a contract without discussions with Offerors. Therefore, each initial offer should contain the Offeror's best terms from a cost or price and technical standpoint. However, the NAFI reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary.

(d) The NAFI may accept any item or group of items of an offer, unless the Offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may be submitted for quantities less than those specified. The NAFI reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the Offeror specifies otherwise in the offer.

(e) A written award or acceptance of offer mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the NAFI may accept an offer, or part of an offer, as provided above, whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. Negotiations conducted after receipt of an offer do not constitute a rejection or counteroffer by the NAFI.

(f) Neither financial data submitted with an offer, nor representations concerning facilities or financing, will form a part of the resulting contract. However, if the resulting contract contains a clause providing for price reduction for defective cost or pricing data, the contract price will be subject to reduction if cost or pricing data furnished is incomplete, inaccurate, or not current.

(g) The NAFI may determine that an offer is unacceptable if the prices proposed are materially unbalanced between line items or sub-line items. An offer is materially unbalanced when it is based on prices which are significantly overstated in relation to cost for other work, and if there is a reasonable doubt that the offer will result in the lowest overall cost to the NAFI, even though it may be the low evaluated offer, or it is so unbalanced as to be tantamount to allowing an advance payment.

L-11. SIGNING OF OFFERS. The Contractor shall sign the offer and print or type its name on the Solicitation, Offer, and Award form of this solicitation. Erasures or other changes must be initialed by the person signing the offer. Offers signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the Contracting Officer.

L-12. UNNECESSARILY ELABORATE PROPOSALS. Unnecessarily elaborate brochures or other presentations beyond those sufficient to present a complete and effective response to this solicitation are not desired and may be construed as an indication of the Offeror's lack of cost consciousness. Elaborate artwork, expensive paper and bindings, and expensive visual and other presentation aids are neither necessary nor desired.

L-13. RETENTION OF PROPOSALS. All proposal documents shall be the property of the NAFI and retained by the NAFI, and therefore shall not be returned to the Offerors.

L-14. ACCEPTANCE PERIOD. The Offeror agrees that its offer remains valid for a period of 60 days from the solicitation's closing date.

(END OF SECTION L)

PART IV, SECTION M: EVALUATION FACTORS FOR AWARD

M-1. EVALUATION AND AWARD FACTORS. The source selected by the NAFI under this Best Value acquisition process may not necessarily be the lowest price offered. The contract resulting from this solicitation will be awarded to the responsible Offeror whose offer, conforming to the solicitation, is the most advantageous to the NAFI, price and non-price factors considered presenting the best overall value to the NAFI. The following non-price factors along with price will be used to evaluate offers. This will be determined by comparing differences in the value of the non-price features with differences in price to the NAFI. Factors are listed in descending order of importance. Any offer that results in a rating of unacceptable for Factor 1 will not receive any further consideration for award.

M-1.1. Order of Importance: The order of relative importance for the evaluation factors is established as follows:

(a) Factor 1 is significantly more important than Factor 2, and Factor 3

(b)Factor 2 is of more importance than Factor 3.

(c) The non-price factors, when combined, are significantly more important than price.

M-1.2. Evaluation Criteria: The proposals will be evaluated on the basis of the following criteria:

(a) Factor 1 - Technical Capability: The proposal will be evaluated based on the Offeror's technical specification description of the equipment and/or services offered, and the approach for meeting the technical capability to include a description of your services and systems that will be used to perform the requirements in section C.

The proposal will be evaluated based on the Offeror's detailed approach to accomplish the task to perform the requirements in section C of this RFP.

(b) Factor 2 – Key Personnel: The proposal will be evaluated on the Offeror's ability to meet Key Personnel qualifications based on the specifications will be evaluated base on the requirements of the performance work statement of section C. Resumes will be evaluated based upon the level of experience and expertise to perform the tasks in the solicitation.

(c) Factor 3 – Past Performance: Evaluation of Past Performance will be based on one or all of the following: The submission of three past performance questionnaires showing the same or similar task and support per Section C within the past 5 years.

The contract referenced above must be of similar size, scope and complexity to the current requirement herein. The Offeror shall include the previous contract number with their submitted proposal.

The NAFI reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. Past performance information will be utilized to determine the quality of the Contractor's past performance as it relates to the probability of success for the required effort. In the case of an Offeror without a record of past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance and will be given a neutral rating.

The Past Performance Questionnaires are not required to be submitted with the proposal if you have received a contract award from CNIC within the past five years.

M-2. EVALUATION AND ADJECTIVAL RATINGS & DEFINITIONS.

M-2.1. Factor 1: Technical Capability and Factor 2: Key Personnel Qualifications evaluations will consider the strengths, significant weaknesses, and deficiencies of the Offeror's proposal using Adjectival Ratings which are:

Technical Evaluation Adjectival Ratings & Definitions

Excellent (E)	Good (G)	Satisfactory (S)	Poor (P)	Unacceptable (U)

E (Excellent) - Proposal demonstrates thorough and detailed understanding of requirements. Technical considerations and capabilities significantly exceed performance and capability standards. Proposal offers one or more significant strengths which are not offset by weaknesses. The proposal represents a high probability of success with no apparent risk in meeting the NAFI's requirements. An excellent rating includes numerous advantageous characteristics of substance which can be expected to result in a superior completed product, and essentially no disadvantages. In addition, an excellent rating may include an aesthetically pleasing and innovative proposed design solution.

G (Good) - Proposal demonstrates clear understanding of requirements. Technical considerations and capabilities exceed performance and capability standards and include some advantageous characteristics of substance and few relatively minor disadvantages. Proposal offers one or more strengths. Strengths must outweigh any weaknesses. The proposal represents a strong probability of success with overall low degree of risk in meeting the NAFI's requirements.

S (Satisfactory) – Proposal demonstrates acceptable understanding of requirements. Technical considerations and capabilities meet performance and capability standards. Proposal offers no weaknesses, or, if there are weaknesses, these weaknesses are offset by strengths. The proposal represents a reasonable probability of success with overall moderate degree of risk in meeting the NAFI's requirements.

P (Poor) - Proposal demonstrates a limited understanding of requirements. Technical considerations and capabilities are questionable as to whether or not they meet performance and capability standards necessary for

acceptable contract performance. Proposal contains weaknesses and offers no strengths, or, if there are strengths, these strengths are outweighed by weaknesses. The proposal represents a low probability of success with overall high degree of risk in meeting the NAFI's requirements. Proposal might be made satisfactory with additional information and without major revisions of the proposal.

U (Unacceptable) - Proposal demonstrates a lack of understanding of the requirements. Technical considerations and capabilities do not meet performance and capability standards necessary for acceptable contract performance. Proposal contains major errors, omissions, significant weaknesses and/or deficiencies. The degree of risk is so high that there is no reasonable likelihood of success, regardless of price. Deficiencies are so major or extensive that a major revision or complete rewrite of the proposal would be necessary.

The mere existence of a single strength does not necessarily merit an Excellent rating; though an Excellent rating may be warranted should that strength provide considerable benefit to NAFI. Conversely, a number of strengths may not merit an Excellent rating if the collective benefit is relatively minor.

M-2.2. Factor 3. Past Performance: An Offeror's past performance will be evaluated based on the quality of the Offeror's recent and relevant past performance efforts, business relationship, timeliness of performance and customer satisfaction. Documented results from Past Performance Questionnaires, interviews, CPARS, and other sources form the support and basis for this assessment.

The Offeror's strengths, weaknesses, deficiencies, and uncertainties relative to how well the Offeror performed will be assessed using the information provided and gathered. No separate rating will be given for the quality of work, business relationship, timeliness of performance, or customer satisfaction; rather, the quality of the Offeror's past performance will be evaluated and incorporated into the confidence assessment as stated below.

A Past Performance evaluation of Performance Confidence assesses the probability an Offeror will meet contract requirements should that Offeror be awarded a contract. The Rating results from the merging of assessment information on (a) quality of work, (b) business relationships, (c) timeliness of performance, and (d) customer satisfaction.

Past Performance will be determined to be relevant if the performance involves work that is the same or similar in nature, size, and complexity to the services being procured under this Solicitation.

The Source Selection Authority may also research, examine, consider, and include in the evaluation of past performance, any reliable reviews, reports, tests, or evaluations by independent laboratories or consumer groups, as well as market-wide surveys that assess customer satisfaction with the products, or similar items, being submitted by the Offeror.

Past Performance Evaluation Levels are:

ADJECTIVAL	DEFINITION
Excellent	Offeror's performance was very current and very relevant to the requirements requested. Relevant defined as performing the same services. Performance was accomplished with no problems for which any required corrective actions taken were highly effective.
Good	Offeror's performance was current and relevant to the requirements requested. Relevant defined as performing similar services. Performance was accomplished

	with no or some minor problems for which any required corrective actions taken were effective.
Satisfactory	Offeror's performance met contractual requirements. Performance was accomplished with some minor problems for which any required corrective actions taken were satisfactory.
Unknown/Neutral	No relevant past performance record is identifiable upon which to base a meaningful past performance risk prediction. A search was unable to identify any relevant past performance information for the Contractor or their Key Personnel. This is neither a positive or negative assessment,
Marginal	Offeror's performance did not meet all of the contractual requirements. Performance was accomplished with serious problems for which any required corrective actions were marginally effective or not fully implemented.
Unsatisfactory	Offeror's performance did not meet most of the contractual requirements. Performance was accomplished with serious problems for which any required corrective actions were ineffective or non-existent.

M-3. PRICE PROPOSAL.

(b) The price proposal shall be evaluated against the following:

(1) Total Estimated Proposal: The total estimated proposal is the sum of the prices for all CLINs in the base year and all option year periods.

(2) Initial Price Evaluation: The objective of the price proposal evaluation is to ensure that the price is fair and reasonable. To achieve the objective of a fair and reasonable price, the below price analysis is deemed the only necessary evaluation.

(3) Price Analysis: In accordance with CNIC M-7043.1, the proposed prices will be examined and evaluated without evaluating its separate cost elements and proposed profit. Techniques include, but are not limited to the following:

(i) Comparison of proposed prices received in response to the solicitation.

(ii) Comparison of previously proposed prices and contract prices with current proposed prices for the same or similar services, if both the validity of the comparison and the reasonableness of the previous price(s) can be established.

(iii) Comparison of proposed prices with Independent Government Cost Estimate.

M-4. CLARIFICATIONS. Communications with an Offeror for clarifications may be necessary and are for the sole purpose of eliminating minor irregularities, informalities, or apparent clerical mistakes in the proposal. Clarification does not give the Offeror an opportunity to revise or modify its proposal.

M-5. EVALUATION OF OPTIONS. The NAFI will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the NAFI to exercise the option(s).

M-6. CONTRACT AWARD. The contract resulting from this solicitation will be awarded to the responsible Offeror whose offer conforms to the solicitation, and is the most advantageous to the NAFI, price and non-price factors considered (best value).

A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the NAFI may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(END OF SECTION M)

Appendix 1_PWS_Technical References_05052021
Online Training Services Performance Work Statement
Technical References

1. **REFERENCES. Compliance with the following specified documents is a requirement when designing, developing training products, plans and strategies, user interface and experience designs, designing and capturing images and graphics, and conducting research and usability studies in support of Military Community and Family Policy online training efforts. Nothing in these documents supersedes applicable laws and regulations unless a specific exemption has been obtained. Any references these documents direct compliance with shall also be complied with under this PWS.**

1.1 **Department of Defense Directives.**
- 1.1.1. DoD Directive 5230.09, Clearance of DoD Information for Public Release https://www.dtic.mil/whs/directives/corres/pdf/523009p.pdf
- 1.1.2. DoD Directive 5400.11-R, "Department of Defense Privacy Program," May 14, 2007; https://www.dtic.mil/whs/directives/corres/pdf/540011r.pdf
- 1.1.3. DoD Directive 5400.7-R DoD Freedom of Information Act Program, April 5, 2019, https://www.dtic.mil/whs/directives/corres/pdf/540007p.pdf
- 1.1.4. DoD Directive 5160.48, "DoD Public Affairs and Visual Information (PA&VI) Education and Training (E&T)," March 21, 2011,
- 1.1.5. https://www.dtic.mil/whs/directives/corres/pdf/516048p.pdf

1.2 **Department of Defense Instructions**
- 1.2.1 DoD Instruction 8910.01, Information Collection and Reporting, May 19, 2014 https://www.dtic.mil/whs/directives/corres/pdf/891001p.pdf
- 1.2.2 DoD Instruction 5400.16 DoD Privacy Impact Assessment (PIA) Guidance, May 19, 2014, https://www.dtic.mil/whs/directives/corres/pdf/540016p.pdf
- 1.2.3 DoD Instruction 1100.13 Surveys of DoD Personnel January 15, 2015 https://www.dtic.mil/whs/directives/corres/pdf/110013p.pdf
- 1.2.4 DoD Instruction 5040.02, "Visual Information (VI)," November 20, 2017, http:s//www.dtic.mil/whs/directives/corres/pdf/504002p.pdf
- 1.2.5 DoD Instruction 5160.70, "Management of DoD Language and Regional Proficiency Capabilities," December 30, 2016, https://www.dtic.mil/whs/directives/corres/pdf/516070p.pdf
- 1.2.6 DoD Instruction 1322.26 "Development, Management, and Delivery of Distributed Learning," May 12, 2020 https://www.dtic.mil/whs/directives/corres/pdf/132226p.pdf
- 1.2.7 DoD Instruction 5200.48, Controlled Unclassified Information (CUI), March 6, 2020, https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/520048p.PDF

1.3 **Service Uniform and Personal Appearance Instructions and Regulations**
- 1.3.1 Army Regulation 670-1, "Wear and Appearance of Army Uniforms and Insignia," May 25, 2017, https://www.apd.army.mil/pdffiles/r670_1.pdf
- 1.3.2 Air Force Instruction 36-2903, "Dress and Personal appearance of Air Force Personnel," March 15, 2021, Chapter 12, paragraph 12.2, https://static.e-publishing.af.mil/production/1/af_a1/publication/afi36-2903/afi36-2903.pdf
- 1.3.3 Marine Corps O P1020.34H, "Marine Corps Uniform Regulations," May 1, 2018, https://www.marines.mil/portals/1/Publications/MCO%201020.34H%20v2.pdf?ver=2018-06-26-094038-137
- 1.3.4 NAVPERS 15665I, "United States Navy Uniform Regulations," https://www.mynavyhr.navy.mil/References/US-Navy-Uniforms/

Online Training Services Performance Work Statement
Technical References

1.4 **OMB Memos and Circulars**
- 1.4.1 OMB M-10-23 Guidance for Agency Use of Third-Party Websites and Applications, June 25, 2010, https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/memoranda_2010/m10-23.pdf

1.4.2 OMB M-06-15 Safeguarding Personally Identifiable Information, May 22, 2006 http://www.whitehouse.gov/sites/default/files/omb/memoranda/fy2006/m-06-15.pdf
1.4.3 OMB M-06-16 Protection of Sensitive Agency Information, June 23, 2006, https://www.osec.doc.gov/opog/privacy/Memorandums/OMB_M-06-16.pdf

1.5. Office of Personnel Management
1.5.1 Training Evaluation Field Guide," January 2011, https://www.opm.gov/policy-data-oversight/training-and-development/reference-materials/training_evaluation.pdf

1.6 **Public Law**
1.6.1 Public Law 107-347 E-Government Act of 2002, December 17, 2002, https://www.gpo.gov/fdsys/pkg/PLAW-107publ347/pdf/PLAW-107publ347.pdf
1.6.2 Public Law 104-13-MAY 22, 1995 Paperwork Reduction Act, https://www.congress.gov/104/plaws/publ13/PLAW-104publ13.pdf
1.6.3 Public Law 105-220, Section 508 of the Rehabilitation Act (29 U.S.C. 794d, as amended by the Workforce Investment Act of 1998, http://www.section508.gov/
1.6.4 Plain Writing Act of 2010, https://www.govinfo.gov/content/pkg/PLAW-111publ274/pdf/PLAW-111publ274.pdf

1.7 **OSD Memorandums**
1.7.1 OSD Memo 13798-10 Social Security Numbers (SSN) Exposed on Public Facing and Open Government Websites, November 23, 2010, http://dpcld.defense.gov/Portals/49/Documents/Privacy/OSD%2013798-10.pdf

1.8 **Other**
1.8.1 DoD 5500.7R, "Joint Ethics Regulation (JER)," November 17, 2011, https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodm/550007r.pdf
1.8.2 Joint Publication 1-02, "Department of Defense Dictionary of Military and Associated
1.8.3 Terms," as amended, https://www.dtic.mil/doctrine/new_pubs/jp1_02.pdf

1.9. Forms
1.9.1 DD Form 1995 "Visual Information (VI) Production Request and Report (Interactive Production Request and Report," April 1, 1998, https:///www.dtic.mil/whs/directives/forms/forminfo/forminfopage939.html
1.9.2 DD Form 2537 "Visual Information Caption Sheet, "February 1, 1994, https://static.dvidshub.net/media/pubs/pdf_7766.pdf

1.9.3 DD Form 2830, "General Talent Release," October 2000, https://www.dtic.mil/whs/directives/forms/eforms/dd2830.pdf
1.9.4 DD Form 2831 "General Release Where Talent Fee or Other Remuneration or Recompense Accrues to the Participant," October 2000 https://www.dtic.mil/whs/directives/forms/eforms/dd2831.pdf
1.9.5 Form 2832 "Release Granting the U.S. Government Permission to Photograph or Otherwise Record the Visual Image or Sound of Private Property," October 2000 https://www.dtic.mil/whs/directives/forms/eforms/dd2832.pdf
1.9.6. DD Form 2833 Release Granting the U.S. Government Permission to Record and Reproduce Program Material Transmitted by Educational or Commercial Broadcast Stations," October 2000, http://www.dtic.mil/whs/directives/forms/eforms/dd2833.pdf

Appendix 3.1

MILITARY COMMUNITY & FAMILY POLICY

Video Accessibility Checklist

The following checklist should be used Department-wide by Military Community and Family Policy staff to verify that videos meet the requirements established by Military Community and Family Policy. This checklist includes compliance with Section 508, in addition to other Military Community and Family Policy requirements. Questions may be directed to the Military Community Outreach Office.

DOCUMENT INFORMATION

Asset Name/URL:	
Reviewer/Tester Name/ Signature:	
Review/Testing Date:	
Authorization Name / Signature:	
Authorization Date	

ID	REQUIREMENTS CHECKLIST	PASS	FAIL	*NIA*
1.1	Is this video free of flashing, strobing or flickering elements?	0	0	0

1.2	Does the video include captions that are synchronized with the video?	0	0	0
1.3	Does the video include audio description that is synchronized with the video?	0	0	0
1.4	Is the video accompanied by a transcript?	0	0	0

REQUIREMENT GUIDELINES

The following guidelines have been established for video files by Military Community and Family Policy Military Community Outreach Strategic Outreach Programs to meet Section 508 compliance requirements.

LO REQUIRED ELEMENTS

1.1 Videos should not contain flashing, strobing or flickering elements, as they can cause some people to experience seizures, dizziness or nausea and be distracting for some users with cognitive disabilities.

1.2 The video must contain captions that are synchronized with the video. Captions are necessary for people who are unable to hear the audio in a video and should include all audio information including both spoken and non-spoken content such as music and laughter.

NOTE: **There are two types of captioning. Open captions show automatically and cannot be turned off. Closed captions can be turned on and off.**

Theway you add captions to a video depends on the player. Some players offer auto-transcription. Some will sync your transcript with the help of voice recognition software. Other players may require that you insert your transcript into a caption editing program a few words at a time so your words appear on screen at the same time as the spoken words.

TIP: **Watch your video to ensure captions appear:**

- **Accurately, especially if you used a player's auto-transcription feature**
- **At the bottom of the screen to minimize interference with visual information Correctly synchronized to the video**
- **Larger than 9 point type**
- **Against a background that offers sufficient contrast**

1.3 The video must include audio descriptions that that are synchronized with the video. Audio descriptions are required only for videos containing visual information that is necessary to understand the content but is not already communicated aurally.

NOTE: **There are two types of audio description. Open audio description plays automatically and cannot be turned off. Closed audio description can be turned on or off.**

Audio descriptions are usually delivered as a separate audio track, adding additional information during the pauses or periods of silence within the audio track. Because many video players don't support the option to turn audio descriptions on and off, you can create and post two versions of your video: one with audio descriptions and one without. If your video player supports multiple audio tracks, you can add a version with audio description and the user can decide which one to play.

TIP: **The easiest way to provide audio description is to build it into your script from the start. For example, have your subjects identify themselves and their surroundings rather than only showing their name.**

1.4 The video must be accompanied by a transcript. Please include the following information with your transcript if applicable:

- Speakers' names
- Words spoken, as well as laughter, crying, singing, etc.
- Music, including lyrics and the style of music (such as rock, dance, orchestra, slow/fast, etc.) On-screen and off-screen background noises providing information or context

f/P: **Transcripts are often generated and used in the captioning process. You can create a transcript manually, with the help of voice-to-speech recognition software, or use the video's script if there was one.**

Appendix 3.2

Military Community and Family Policy

eLearning Requirement Checklist for 508 Compliance

The following checklist should be used departmentwide by Military Community and Family Policy staff to verify that elearning courses meet the requirements established by MC&FP. The checklist includes compliance with Section 508, in addition to other MC&FP requirements.

Document Information

Document Title:	
Reviewer/Tester Name/Signature:	
Review/Testing Date:	
The program manager approves that this work has been validated as 508 compliant:	

ID	1.0 508 Compliance Standard	Pass	Fail	*NIA*
1.1	All videos within the elearning products include audio descriptions and closed captioning.	0	0	0
1.2	All elearning products include a transcript or other form of text-based notes that allow the user to read the narration if audio is turned off or muted.	0	0	0
1.3	All images (grouped images and nontext elements that convey information) have alternative text descriptions.	0	0	0
1.4	elearning courses are navigable without a mouse. User can navigate with the keyboard.	0	0	0
1.5	The contrast between the text and its background is readable by people with moderately low vision. The contrast ratio is at least 3:1 for large text.	0	0	0

1.6	All decorative images that do not convey information have blank alternative text (this is to ensure that the screen reader does not read repetitive information and to maintain the correct tab order for screen readers).	0	0	0
1.7	The course is compatible with a screen reader. If available, use JAWS or NVDA to test.	0	0	0
1.8	An alternate 508 version of course that does not include animation is offered. This can be used in place of making the original course 508 compliant.	0	0	0
1.9	Other 508 requirements as identified by the Americans with Disabilities Act as related to elearning development (https://www.section508.gov) are followed.	0	0	0
1.10	A visual check has confirmed no hidden data is present.	0	0	0
1.11	The document has no flashing objects.	0	0	0

Noncompliant Element Tracking

The following table should be used to document any elements of the asset that failed or were identified as being noncompliant. Identify each failed/noncompliant element of the asset by ID Number and include a description of the reason why the element failed or is noncompliant.

ID	Description of Failure/Noncompliance

Appendix 5 Constraints

1. **Non-Disclosure Agreements**. Standard non-disclosure statements shall be provided as required for system administration personnel who may have access to government data in the course of their duties.

2. **Accessibility**. Requirements for accessibility based on Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) are determined to be relevant. Information about the Section 508 Electronic and Information Technology (EIT) Accessibility Standards may be obtained via the Web at the following URL: www.Section508.gov .

Military Community and Family Policy requires that all new content developed for electronic distribution – either hosted online via websites and applications or distributed via email – be made accessible. MC&FP has guidelines for accessible content available at the following hyperlink: https://www.militaryonesource.mil/legal-security/#accessibilitytools. This requirement includes documents including but not limited to Word, Excel, PowerPoint, and PDF documents, and audio and video files.

The contractor must stay current with accessibility regulations and anticipate and implement new policies (e.g. WCAG) and practices as they are modified and/or updated.

Further, given the pace of change in the technology and content accessibility, it is impossible to anticipate how individual Military Community and Family Policy program requirements will evolve over the life of the contract. The contractor must incorporate advances and changes in accessibility (e.g. WCAG) that will allow it to continue to build a Military Community and Family Policy IT and content structure that is easily accessible through assistive technology devices.

3. **Data**. All data (including but not limited to enclave analytics, social media analytics, training analytics, e-mail traffic, contact information) is and shall remain the property of the government. The contractor shall ensure that the government retains access and download capability of all data for research, reporting, investigation, transfer, or migration to other systems.

4. **Release of Information**. In accordance with Department of Defense instruction 5230.09, Clearance of DoD Information for Public Release, the contractor shall be responsible for following Military Community and Family Policy's standard operating procedures for the review and release of content to the public.

5. **Operational Security**. In accordance with Department of Defense Manual 5205.02-M, DoD Operations Security (OPSEC) Program Manual, the contractor shall be responsible for following Military Community and Family Policy's standard operating procedures for the operational security as it relates to the review and release of information.

6. **Appearance of Endorsement**. In accordance with the Department of Defense 5500.7-R, Joint Ethics Regulation, and Department of Defense Directive 5410.18, Public Affairs Community Relations Policy, the contract or shall follow Military Community and Family Policy's standard operating procedures as it relates to the endorsement – perceived or otherwise – of a non-federal entity.

7. **Property of the Government**. The government will retain the rights to all content, imagery, graphics, and special promotions created by the contractor during the period of this contract ad infinitum. All deliverables supplied to the government shall be the sole property of the government. These documents and materials may not be used by the contractor for any purpose other than the performance of this contract, nor sold by the contractor. The contractor may not distribute for profit any content, imagery, graphics, and special promotions created by the contractor during the period without written consent from the government.

The contractor may retain the right to use any content, imagery, graphics, and special promotions created by the contractor during the period of this contract for the purpose of (1) providing samples of the contractor's work or (2) instruction – including, but not limited to, presentations, lectures, webinars, and published materials in any medium.

8. **Printing Clause**. **Government Printing Office (GPO**). Any print product developed for a communication effort must be printed by the government printing office.

The contractor will submit the creative files to the government COR or designated POC for printing. The contractor must submit the "print-model" a minimum of 60 days in advance of the date the print product is needed for shipping or distribution.

In the case of a high level or time sensitive requirement based on the need, the COR will consult with the government program manager to expedite printing with GPO or obtain a waiver from GPO.

Under no circumstance will print-model products be printed commercially by the contractor without approval from the COR. The government will accordingly coordinate with the contractor to establish enough time to submit the print product to GPO.

9. **Branding and Word Art.** The Contractor shall use Government-branded templates and/or Government logos, and fallow Government visual style guides for all branded deliverables.

The contractor shall not use the contractor's logo or word art as branding or graphics on any deliverable, without permission from the government.

This excludes contractor monthly, quarterly, and annual contract reports and invoices.

10. **Documentation and Data rights**. Documents, data files, reports, correspondence, and all other documents and writings, together with any charts, graphs, tables, illustrations, photographs, images, and other illustrative, explanatory, historical documents related thereto or independent thereof, regardless of the medium (or media) by which they were produced, preserved, stored, or created in connection with or for purpose(s) of work performed under this PWS and contract, are property of the government and shall be delivered to the COR promptly, upon request.

The contractor agrees to assume responsibility for protecting the confidentiality of government records, which is not considered public information. Each contractor or employee of the contractor to whom information may be made available or disclosed shall be notified in writing by the contractor that such information may be disclosed only for purposes and to the extent authorized herein. The contractor shall not release any information related to this contract to the public, media or other unauthorized persons or organizations unless the government has conducted the appropriate security review and granted written approval (e.g., posting information to a public website).

Any contract deliverable (document, report, technical or otherwise) will be consistent implementing any applicable Data Rights clauses as required by FAR Part 27 and DFARS Part 227. To the extent there is any ambiguity between a FAR/DFARS clause and this PWS, this PWS shall govern and grant the government unlimited rights to all raw data produced. Any contract deliverable document to be published must be reviewed for evaluation of the contractor's data rights during publication, including assignment of copyright to the government.

Any research, findings, documents or reports produced by a federal employee during the performance of his or her duties, belongs to the employing federal Agency. Any research, findings, documents or reports produced by a contract employee during the performance of his or her duties, shall be the sole property of the government. These research, findings, documents or reports may not be used by the contractor for any purpose other than the performance of this contract, nor sold by the contractor. The employee may not use such work for his or her own personal financial benefit or the financial benefit of any the person or non-federal entity. Sources for reference; 18 USC 209, Joint Ethics Regulation, DoD 5500.07-R, Section 5-404, and 5 CFR 2635.101. Any publication must be reviewed to ensure that its publication is not intended to be for the financial benefit of any Federal employee or any non-federal entity, including a Defense contractor.

Standard Operating Procedures
Appendix 6

External Link Vetting

This document provides guidelines for vetting newly requested external links and also provides a process for the annual re-vetting of approved external links.

Created August 2020

External Link Vetting
Standard Operating Procedures

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Purpose

To establish the policy and procedures for maintaining and managing the external link vetting process for Military Community and Family Policy.

Scope and Responsibilities

This standard operating procedure details the responsibilities and procedures for vetting newly requested external links, ensuring the Link Vetting Application accurately reflects all approved external links that are posted on any of MC&FP's digital properties, or offline products, and conducting an annual re-vetting of previously approved external links.

The ability to hyperlink to sources external to MC&FP is a fundamental part of the World Wide Web, and can add significant value to MC&FP's digital properties, including Military OneSource. However, per OMB M-17-06: Policies for Federal Agency Public Websites and Digital Services, agencies must clearly identify external links from their websites. Agency websites must clearly state that the content of external links to non-federal agency websites is not endorsed by the federal government and is not subject to federal information quality, privacy, security and related guidelines. Any link that is not a federal .gov or .mil website is considered an external link.

In accordance with this guidance, the MC&FP Office of Military Community Outreach has established objective and supportable criteria and guidelines for the selection and maintenance of links to external websites and webpages within any of MC&FP's digital properties or offline products.

Criteria

- Links to non-Department of Defense web resources should support MC&FP's mission. External links will be reviewed annually by the program manager or designee to ensure their continued suitability. If the content of a linked external site becomes questionable, objectionable or broken, the link will be removed.
- In accordance with DOD 5500.7-R, no product endorsements or preferential treatment shall be given on publicly accessible official DOD websites.
- No payment of any kind shall be accepted in exchange for a link placed on MC&FP publicly accessible websites, web applications or social media pages.
- In accordance with DOD 5500.7-R, publicly accessible DOD websites shall not require or encourage users to choose any specific browser software. Only text or hyperlinked text shall be used to direct visitors to software download sites. Graphics or logos depicting companies/products shall not appear on publicly accessible DOD websites without prior approval from the Deputy Assistant Secretary of Defense for Military Community and Family Policy and a waiver from the Office of General Counsel.
- MC&FP programs are encouraged to link to authorized activities in support of MC&FP's mission, such as the Army and Air Force Exchange Service, the Navy Exchange Service Command, the Marine Corps Exchange and installation Morale, Welfare and Recreation services.

- When a publicly accessible MC&FP digital property is intended to serve a public purpose, program directors/managers must realize that once the decision is made to include a link to one non-DOD site, the organization may have to link to all similar sites.

- A disclaimer shall be displayed when linking to external non-DOD websites. This disclaimer may appear on the page or pages listing external links, or through an intermediate "exit notice" page.
- The MC&FP Office of Military Community Outreach has standardized criteria for organizations, agencies and programs to be listed as community resources on any MC&FP website, web application or social media page, which should reinforce the intent to communicate citizen support to service members, veterans and their family members.
- The MC&FP Office of Military Community Outreach reserves the right to deny or remove any resource that:
    - Provides misleading information or unsubstantiated claims
    - Appears on the annual State Department list of Foreign Terror Organizations
    - Conflicts with the Office of Military Community Outreach's mission or violates any of its policies

Procedures

Vetting of new external links

All new external non-government website/link requests will be requested via the Link Vetting Application, or LVA.

- https://apps.militaryonesource.mil/lva

Either a government program manager or a member of the contract team will complete all the steps in the link request wizard and submit the request for MCO review. All requests must meet the criteria detailed in this SOP.

External links that are requested via the Defense Installation Messaging System, as part of the quarterly certification or routine maintenance of content within the MilitaryINSTALLATIONS website, are automatically entered in the LVA for review. The criteria for approval remain the same.

Once an external link is approved it will be added to the annual re-vetting schedule.

Annual re-vetting of approved external links

Currently the LVA includes entries that are not viable Uniform Resource Locators, multiple entries for the same URL, URLs with no approval date and URLs that are no longer functioning. Before an annual review schedule can be created, the LVA must be cleaned up.

The contract team is recommending the following phased approach to address the issues outlined above and to develop an ongoing annual external link re-vetting schedule and process:

Phase I

- The team will download a spreadsheet containing all the approved links within the LVA.
- The team will highlight any entries that are not viable URLs.

- The team will highlight all duplicate entries.
- The team will submit the annotated spreadsheet for Outreach Operations review.
- OO will review and provide feedback and/or approval.
- The team will go into the LVA and remove the bad and/or duplicate links.

Phase II

- Once phase I has been completed within the LVA, the team will download a new spreadsheet of approved links within the LVA.
- The team will highlight any links that have missing approval and/or expiration dates.
- The team will work with OO to update the missing information and/or re-vet those links.
- The team will make the required updates within the LVA.

Phase III

- Once phase II has been completed within the LVA, the team will download a new spreadsheet of approved links within the LVA.
- The team will highlight all the expired links. There are currently over 3,500 expired links.
- The team will work with OO to re-vet all the links that expired from 2014 to 2018. There are approximately 140 links that expired within that timeframe.
- The team will make the required updates within the LVA.

Phase IV

Once phases I through III have been completed, the team will update this SOP with the following:

- An annual re-vetting schedule for the remaining links
- Process for re-vetting each link
- Point of contact responsible for re-vetting each link
    - OO
    - Program manager
    - Contract team

Appendix 7

The Government considers the Chapman Alliance Ratio as an industry benchmark in estimating the level-of-effort and costs for curriculum development. The chart below reflects the Chapman Alliance descriptions and ratios. Historically, this benchmark has been utilized in the development of the Government's requirements and cost estimates.

Method of Training Delivery	**Chapman Alliance Descriptions & Ratios**		
	Number of Development Hours per 1 Finished Training Hour		
	Rapid Development, Simple Project	**Average Typical Project**	**Advanced, Complex Project, Enhanced Media**
Instructor Led Training (ILT) including front end analysis, design, lesson plans, handouts, workbooks, PowerPoint, SME reviews of content to be used during live, face-to-face learning events.	ILT training, Possible repurposing from existing source material, minimal print-based learning support material **22:1**	ILT training, Average project for creating corporate ILT class with well documented deliverables (Lesson Plan, Handouts, Workbooks, PowerPoint Visuals) **43:1**	ILT training, Complex subject matter, very custom, extended time spent on formatting classroom deliverables **82:1**
Level 1 eLearning Basic: Content pages, text, graphics, simple audio, simple video, test questions. PowerPoint-to-eLearning often falls into this category. Basically pages with assessment.	eLearning output, Rapid Development, Simple Content, Specialized Authoring Tools (i.e. PowerPoint to eLearning tools) **49:1**	eLearning output, Most typical (average) Level 1 eLearning Content **79:1**	eLearning output, Complex projects, difficult to produce, more media production **125:1**
Level 2 eLearning Interactive: level 1 plus 25% (or more) interactive exercises (allowing leaners to perform virtual "try it" exercise), liberal use of multimedia (audio, video, animations).	eLearning output, Rapid development through templated interactions, simple animation, efficient or low-end media production **127:1**	eLearning output, Most typical (average) Level 2 projects **184:1**	eLearning output, advanced and custom interactions, embedded simulation activities and lots of media **267:1**
Level 3 eLearning Advanced: Highly interactive,	eLearning output, templated interactions, templated games and	eLearning output, Most typical (average) Level 3 projects	eLearning output, complex projects, advanced learning simulations and games,

possible simulation or serious game based, used of avatars, custom interactions, award winning caliber courseware.	simulations, efficient simulation development practices (rapid development) **217:1**	**490:1**	extensive media production **716:1**
Large Scale Blended Learning Development	Repurposing 60% or more of "existing" content **22:1**	Average development for blended learning **49:1**	Developing 60% or more of “New" content **69:1**

Source: Chapman, B. (2010). ***How Long Does it Take to Create Learning?*** [Research Study]. Published by Chapman Alliance LLC. www.chapmanalliance.com; and Source: Chapman, B. (2013). ***Large Scale, Blended Learning Development: Benchmark*** [Research Study]. Published by Chapman Alliance LLC. www.chapmanalliance.com.

Appendix 8- Travel Request Form

Contract #/Delivery Order #:			**Date of Request:**	
Requesting Office/Directorate:	OSD/MC&FP			
Travel Period (mm/dd/yy):	From:		To:	
Travel Locations (City & State):	From:		To:	
Requestor:				
Title/Company:				
Program:				
Purpose of Travel:				
Notes:				
Name/Title of Traveler(s):				

Estimated Expenses

Airfare		$0.00	No. of Travelers	0		$0.00
POV	Round Trip Mileage	0	No. of POVs	0		$0.00
Rental Car		$0.00	No. of Cars	0		$0.00
Ground Transportation (taxi, metro, etc.)						$0.00
Parking						$0.00
Lodging	Per night	$0.00	No. of Nights	0	**Total Lodging**	$0.00
Meals & Incidental Expenses Rate		$0.00				
	1st Day/1 Day Only	$0.00				$0.00
	Last Day	$0.00				$0.00
	All Other Days	$0.00	No. of Days	0		$0.00
					Total M&IE	$0.00
					Total Estimated Expenses	**$0.00**

Contract Program Manager		**Date**	
Program Director		**Date**	

COR		Date	

Online Training Support Performance Work Statement

Appendix 9 Computer Access Tokens

1. All personal requiring access to application source code, system services, direct OS or file system (for example, APEX programmers, Database Administrators, and System Log reviewers) and

anyone requiring direct access to host equipment or perform a security role will be required to have a DoD issued Common Access Card (CAC).

2. All other personal requiring access to MC&FP based applications (TAR, iCMS, MCO Portal, etc.) will be required to have a valid External Certification Authority (ECA) certificate.

3. External Certification Authority program.

   3.1 The DoD has established the External Certification Authority (ECA) program to support the issuance of DoD-approved certificates to industry partners and other external entities and organizations. The ECA program is designed to provide the means for these parties to securely communicate with the DoD and authenticate to DoD Information Systems. All MC&FP provided tools, assignment tracking and maintenance applications require a DoD approved certificate for each person who will access these resources.

   3.2 It is the contractor's responsibility to purchase all ECA certificates for their staff, sub-contractors and consultants.

   3.3 An ECA may not be used for more the one MC&FP contract. If an employee is employed for more than one contract, he or she MUST have and use a separate ECA.

   3.4 It is the contractor's responsibility to provide technical support for their staff, sub-contractors and consultants in support of ECA issues.

   3.5 For more information on the ECA program and where they can be purchased, please refer to https://public.cyber.mil/eca/